



CHAPTER 67

An Act to amend the law relating to road traffic (including driving licences, lighting and insurance), the provision of parking places, the regulation of public service vehicles and the licensing of goods vehicles; and for purposes connected therewith. [2nd August, 1956]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

General provisions relating to road traffic

1.—(1) The provisions of this and the next following section shall have effect for the purpose of ascertaining whether the prescribed statutory requirements relating to the construction and condition of motor vehicles or their accessories or equipment are complied with. Tests of satisfactory condition of vehicles.

(2) The Minister may by regulations make provision for the examination of vehicles submitted for examination under this section and for the issue, where it is found on such an examination that the said requirements are complied with, of a certificate (hereinafter referred to as a "test certificate") that at the date of the examination the requirements were complied with in relation to the vehicle.

(3) Examinations for the purposes of this section shall be carried out by persons, not being officers of the Minister, authorised for those purposes by the Minister (hereinafter referred to as "authorised examiners"), by inspectors appointed by the Minister, or by inspectors appointed by any council designated by the Minister for the purposes of this section, being the council of a county, of a borough, or of a large burgh (within the meaning of the Local Government (Scotland) Act, 1947).

(4) Where a test certificate is refused, the inspector or examiner shall issue a notification of the refusal stating the grounds thereof, and any person aggrieved by the refusal or the grounds thereof may appeal to the Minister; and on any such appeal the Minister shall cause a further examination to be made and either issue a test certificate or issue such a notification as aforesaid.

(5) For the purposes of their functions under this section the Minister or a council designated for the purposes of this section may provide and maintain—

- (a) stations where examinations under this section may be carried out, and
- (b) apparatus for carrying out such examinations.

(6) The Minister may make regulations for the purpose of giving effect to the foregoing provisions of this section and for prescribing anything authorised by this section to be prescribed, and in particular as to—

- (a) the authorisation of examiners, the imposition of conditions to be complied with by authorised examiners and the withdrawal of authorisations;
- (b) the manner in which, conditions under which, and apparatus with which examinations are carried out, the maintenance of that apparatus in an efficient state, and the inspection of premises at which and apparatus with which examinations are being, or are to be, carried out;
- (c) the manner in which applications may be made for the examination of vehicles under this section, the manner in which and time within which appeals may be brought under subsection (4) of this section, the information to be supplied and documents to be produced on such an application, examination or appeal, the fees to be paid on such an application or appeal, and the repayment of the whole or a part of the fee paid on such an appeal where it appears to the Minister that there were substantial grounds for contesting the whole or part of the decision appealed against;
- (d) the form of, and particulars to be contained in, test certificates and notifications of the refusal thereof, and the supply by the Minister of forms for such certificates and notifications and the charges to be made for the supply thereof;
- (e) the issue of duplicates of test certificates lost or defaced and the fee to be paid for the issue thereof;
- (f) the keeping by designated councils and authorised examiners of registers of test certificates in the prescribed

form and containing the prescribed particulars, and the inspection of such registers by such persons and in such circumstances as may be prescribed ;

- (g) the keeping of records by designated councils and authorised examiners and the furnishing by them of returns and information to the Minister ;

and regulations under this section may make different provision in relation to different cases or classes of cases.

(7) If any person with intent to deceive falsely represents himself to be, or to be employed by, an authorised examiner he shall be guilty of an offence and liable on summary conviction to a fine not exceeding one hundred pounds or imprisonment for a term not exceeding three months or both such fine and such imprisonment.

(8) Subsections (1), (3) and (4) of section one hundred and twelve of the Act of 1930 (which relate to forgery and other offences committed as respects certificates of insurance and other documents) shall apply to test certificates as they apply to certificates of insurance.

(9) The powers conferred by this section to make regulations shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

2.—(1) Any person who uses on a road at any time, or causes ^{Obligatory} or permits to be so used, a motor vehicle to which this section ^{test certificates.} applies, and as respects which no test certificate has been issued within the appropriate period before the said time, shall be guilty of an offence and liable on summary conviction to a fine not exceeding twenty pounds, or in the case of a second or subsequent conviction to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months.

(2) The motor vehicles to which this section applies at any time are those first registered under the Vehicles (Excise) Act, 1949, or the Roads Act, 1920, not less than ten years before that time :

Provided that this section shall not apply to public service vehicles adapted to carry eight or more passengers, to tramcars, to trolley buses, or to vehicles of such classes or descriptions as may be prescribed, and the Minister may by order made by statutory instrument provide that this section shall apply only to vehicles for the time being registered as aforesaid with such councils as may be specified in the order.

(3) The Minister may by order made by statutory instrument direct that the last foregoing subsection shall have effect with the substitution for ten years of such shorter period as may be specified in the order.

An order under this subsection shall not have effect unless approved by resolution of each House of Parliament.

(4) The Minister may by regulations exempt from subsection (1) of this section the use of vehicles for such purposes as may be prescribed.

(5) The Minister may by regulations exempt from subsection (1) of this section the use of vehicles in any such area as may be prescribed.

(6) The Minister may by regulations provide that where application is made for a licence under the Vehicles (Excise) Act, 1949, for a vehicle to which this section applies, the licence shall not be granted except after either—

(a) the production of such evidence as may be prescribed of the granting of an effective test certificate or (if it is so prescribed) the production of such a certificate, or

(b) the making of such a declaration as may be prescribed that the vehicle is not intended to be used during the period for which the licence is to be in force except for a purpose prescribed under subsection (4), or in an area prescribed under subsection (5), of this section.

In paragraph (a) of this subsection the expression “effective test certificate” means, in relation to an application for a licence for a vehicle, a test certificate relating to the vehicle and issued within the appropriate period before the date from which the licence is to be in force.

(7) In this section the expression “appropriate period” means a period of twelve months or such shorter period as may be prescribed.

(8) In this section the expression “prescribed” means prescribed by regulations of the Minister, and the power to make regulations conferred by this section shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

(9) Where within the appropriate period after the issue of a test certificate, but not earlier than one month before the end of that period, a further test certificate is issued as respects the same vehicle, the further certificate shall be treated for the purposes of this section as if issued at the end of the said appropriate period.

(10) For the purpose of spreading the work of issuing certificates in contemplation of the coming into operation of this section or of a change in the length of the appropriate period—

(a) the order appointing a day for the coming into operation of this section may appoint different days as respects vehicles registered as mentioned in subsection (2) of this section at different times ;

(b) the regulations changing the length of the appropriate period may be made so as to come into operation on different days as respects vehicles first registered under either of the enactments mentioned in the said subsection (2) at different times.

3.—(1) Any authorised examiner may test a motor vehicle on a road for the purpose of ascertaining whether the requirements imposed by law (whether generally or at specified times or in specified circumstances) as to brakes, silencers, steering gear, tyres, and lighting equipment and reflectors are complied with as respects the vehicle, and of bringing to the notice of the driver any failure to comply with those requirements, and for the purpose of testing the vehicle the examiner may drive it: Testing of condition of vehicles on roads.

Provided that a vehicle shall not be required to stop for a test except by a police constable in uniform.

(2) The following persons may act as authorised examiners for the purposes of this section, that is to say, any certifying officer or public service vehicle examiner appointed under Part IV of the Act of 1930, any person appointed as an examiner under the Road and Rail Traffic Act, 1933, or appointed to examine and inspect public carriages for the purposes of the Metropolitan Public Carriage Act, 1869, any person appointed to act for the purposes of this section by the Minister, and any police constable authorised so to act by or under instructions of the chief officer of police.

A person appointed as aforesaid shall produce his authority to act for the purposes of this section if required to do so.

(3) On the examiner proceeding to test a vehicle under this section, the driver may elect that the test shall be deferred to a time, and carried out at a place, fixed in accordance with the First Schedule to this Act, and the provisions of that Schedule shall apply accordingly:

Provided that—

(a) where it appears to a police constable that, by reason of an accident having occurred owing to the presence of the vehicle on a road, it is requisite that a test should be carried out forthwith, he may require it to be so carried out and, if he is not to carry it out himself, may require that the vehicle shall not be taken away until the test has been carried out; and

(b) where in the opinion of a police constable the vehicle is apparently so defective that it ought not to be allowed to proceed without a test being carried out, he may require the test to be carried out forthwith.

(4) If any person obstructs an authorised examiner acting under this section, or fails to comply with any requirement of this section or the First Schedule to this Act, he shall be liable on summary conviction to a fine not exceeding twenty pounds.

(5) In this section and in the First Schedule to this Act the expression "test" includes "inspect" or "inspection", as the case may require, and references to a vehicle include references to any trailer drawn thereby.

Amendments
as to speed
limit in
built-up areas.

4.—(1) Section one of the Act of 1934 (which provides for a general speed limit in built-up areas) shall have permanent effect, and accordingly subsection (10) of that section (which relates to the duration thereof) is hereby repealed.

(2) A length of trunk road or of classified road shall not be deemed for the purposes of the Act of 1934 to be a road in a built-up area by reason only of the system of street lighting provided thereon if no relevant system of street lighting was provided thereon before the coming into operation of this subsection.

(3) As respects any length of road in a built-up area to which this subsection applies, subsection (1) of section one of the Act of 1934 shall have effect with the substitution for the limit of speed to be observed under that section of a limit of speed of forty miles per hour.

(4) The last foregoing subsection shall apply to any length of road to which it is applied by a direction given by the authority having power to give as respects that length of road a direction that it shall be deemed not to be a road in a built-up area, but the giving, revocation or variation thereof shall be subject to the like provisions as the giving, revocation or variation by that authority of such a direction as is last mentioned.

(5) The provisions of subsections (3) and (4) of this section shall not take effect until an order by statutory instrument appointing a day for such subsections to come into operation has been approved by a resolution of each House of Parliament:

Provided that no such order shall be made before the Minister has reported to each House of Parliament the views of the Departmental Road Safety Committee on the results of the experimental introduction of a forty miles per hour speed limit in the London Traffic Area.

(6) Subsection (3) of section one of the Act of 1934 (which gives power, by order approved by Parliament, to increase or reduce the general speed limit in built-up areas) shall apply in relation to subsection (3) of this section, and in subsection (7) of the said section one (which relates to traffic signs), in paragraph (a), for the words from "the places" to the end of the paragraph there shall be substituted the words "whether a length of road is or is not deemed to be a road in a built-up area and what limit of speed is to be observed where a length of road is deemed to be such a road; and".

(7) Where no relevant system of street lighting is provided on any length of road but that length of road is deemed to be a road in a built-up area, a person shall not be convicted of an offence under section ten of the Act of 1930 committed on that length of road in contravention of section one of the Act of 1934 unless the fact that it is deemed to be such a road is indicated by means of such traffic signs as are mentioned in the said subsection (7).

(8) In any proceedings for an offence under section ten of the Act of 1930 committed in contravention of section one of the Act of 1934, being proceedings relating to driving on a length of road provided with a relevant system of street lighting, evidence of the absence of derestriction signs shall be evidence of the length of road being deemed to be a road in a built-up area.

(9) In any proceedings for an offence under the said section ten committed in contravention of the said section one—

(a) a certificate of an officer of the highway authority for any road stating whether a relevant system of street lighting was provided on any length of that road before the coming into operation of subsection (2) of this section; and

(b) a certificate of an officer of the Minister, or, in Scotland, of the Secretary of State that any road is or is not a trunk road or a classified road,

shall be evidence of the facts certified; and a document purporting to be such a certificate and to be signed by such an officer as is mentioned in paragraph (a) or (b) of this subsection shall be deemed to be such a certificate unless the contrary is shown.

(10) In this section the expression "classified road" means a road classified by the Minister or the Secretary of State under the Ministry of Transport Act, 1919 in Class I or Class II or in any class declared by him to be not inferior to those classes, the expression "derestriction sign" means a traffic sign displayed in pursuance of subsection (7) of section one of the Act of 1934 to indicate that the length of road is to be deemed not to be in a built-up area, and the expression "relevant system of street lighting" means a system of street lighting furnished by lamps placed two hundred yards or less apart.

5.—(1) The Minister or, in relation to Scotland, the Secretary of State or the Minister may with the approval of the Treasury provide for promoting road safety by disseminating information or advice relating to the use of roads.

Road-safety
information
and road
training.

(2) A local authority shall have power to make arrangements for the purposes of the last foregoing subsection or for giving practical training to road users or any class or description of road users, and to make contributions towards the cost of arrangements for the like purposes made by other authorities or bodies; and the Minister or, in relation to Scotland, the Secretary of State or the Minister may with the approval of the Treasury make contributions towards the cost of any such arrangements as are mentioned in this subsection.

(3) Where, not less than two months before the beginning of any financial year, the Minister on an examination of arrangements proposed to be made under the last foregoing subsection by a local authority in England or Wales, not being the council

of a county or county or metropolitan borough, is satisfied that arrangements so made are likely to be effective and notifies the local authority that he is so satisfied, then, from the beginning of that year until a notification by the Minister to the local authority that he is no longer so satisfied takes effect, the expenditure of the county council in respect of the cost of arrangements, or of contributions, made by the county council under the last foregoing subsection shall not be chargeable on the area of the first-mentioned authority.

A notification by the Minister that he is no longer satisfied as aforesaid shall take effect at the end of the financial year in which it is given or, if it is given during the last two months of a financial year, at the end of the next following financial year.

(4) The provisions of the Second Schedule to this Act shall have effect for authorising the payment of travelling and other allowances, and grants in respect thereof, in connection with arrangements made by a local authority under subsection (2) of this section.

(5) In this section the expression "local authority" means—

(a) as respects England and Wales, the council of a county, a borough or an urban district, or the Common Council of the City of London,

(b) as respects Scotland, a county council or town council.

Amendment of
s. 59 (1) of Act
of 1930.

6.—(1) In paragraph (c) of subsection (1) of section fifty-nine of the Act of 1930, as amended by section twenty-two of the Act of 1934 (which paragraph empowers the Minister or the Secretary of State by regulations to provide among other things for the removal from roads, and safe custody, of vehicles which have been allowed to remain at rest on a road so as to be likely to cause danger to other persons using the road or to appear to have been abandoned), after the words "a road" there shall be inserted the words "in contravention of any statutory prohibition or restriction or" and after the word "custody" there shall be inserted the words "or for the moving from one position on a road to another position on that or another road", and for the words "or to" there shall be substituted the words "or as to cause obstruction to such persons or as to".

(2) In subsection (3) of the said section fifty-nine (which provides for the recovery of expenses incurred in the execution of duties imposed by such regulations as aforesaid) for the word "incurred" there shall be substituted the words "reasonably incurred".

Amendment
of s. 8 of
Act of 1934.

7.—(1) At the end of subsection (1) of section eight of the Act of 1934 (which prohibits the sale or supply of vehicles for delivery in a condition in which their use on a road would be unlawful by virtue of section three of the Act of 1930) there shall be added the words "or by virtue of any provision made as

respects brakes, steering gear or tyres by regulations under section thirty of that Act, or in such a condition, as respects lighting equipment or reflectors or the maintenance thereof, that it is not capable of being used on a road during the hours of darkness without contravention of the requirements imposed by law as to obligatory lamps or reflectors”.

(2) At the end of subsection (4) of the said section eight (which affords a defence in proceedings for an offence under that section) there shall be added the following words “or, in the case of a vehicle or trailer the sale, supply or offer of which is alleged to be unlawful by reason of its condition as respects lighting equipment or reflectors or the maintenance thereof, would not be so used during the hours of darkness until it had been put into a condition in which it might be so used during those hours without contravention of the requirements imposed by law as to obligatory lamps or reflectors”.

(3) At the end of the said section eight there shall be added the following subsections—

“(5) Nothing in the preceding provisions of this section shall affect the validity of any contract or any rights arising under a contract.

(6) In this section ‘obligatory lamps or reflectors’ means, in relation to a motor vehicle or trailer, the lamps or reflectors required by law to be carried thereon while it is on a road during the hours of darkness and when it is neither drawing nor being drawn by another vehicle, except that the said expression does not, in the case of a trailer, include lamps showing a white light to the front”.

8.—(1) Any person who causes the death of another person by the driving of a motor vehicle on a road recklessly, or at a speed or in a manner which is dangerous to the public, having regard to all the circumstances of the case, including the nature, condition and use of the road, and the amount of traffic which is actually at the time, or which might reasonably be expected to be, on the road, shall be liable on conviction on indictment to imprisonment for a term not exceeding five years.

Causing death
by reckless or
dangerous
driving of
motor vehicles.

(2) An offence against this section shall not be triable by quarter sessions; and nothing in the last foregoing subsection shall be construed as empowering a court in Scotland, other than the High Court of Justiciary, to pass for any such offence a sentence of imprisonment for a term exceeding two years.

(3) Section twenty of the Coroners (Amendment) Act, 1926 (which makes special provision where the coroner is informed before the jury have given their verdict that some person has been charged with one of the offences specified in that section) shall apply to an offence against this section as it applies to manslaughter.

(4) If upon the trial of a person for an offence against this section the jury are not satisfied that his driving was the cause of the death but are satisfied that he is guilty of driving as mentioned in subsection (1) of this section, it shall be lawful for them to convict him of an offence under section eleven of the Act of 1930, whether or not the requirements of section twenty-one of that Act (which relates to notice of prosecutions) have been satisfied as respects that offence.

Punishment
of persons
in charge
of motor
vehicles when
under influence
of drink or
drugs.

9.—(1) Any person who when in charge of a motor vehicle which is on a road or other public place, but not driving the vehicle, is unfit to drive shall be liable—

- (a) on summary conviction to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding four months, and in the case of a second or subsequent conviction either to a fine not exceeding one hundred pounds or to such imprisonment as aforesaid or to both such fine and imprisonment;
- (b) on conviction on indictment to imprisonment for a term not exceeding six months or to a fine or to both such imprisonment and a fine:

Provided that a person shall be deemed for the purposes of this section not to have been in charge of a motor vehicle if he proves—

- (i) that at the material time the circumstances were such that there was no likelihood of his driving the vehicle so long as he remained unfit to drive; and
- (ii) that between his becoming unfit to drive and the material time he had not driven the vehicle on a road or other public place.

In this subsection the expression “unfit to drive” means under the influence of drink or a drug to such an extent as to be incapable of having proper control of a motor vehicle.

(2) On a second or subsequent conviction of an offence under this section the offender shall, unless the court for special reasons thinks fit to order otherwise and without prejudice to the power of the court to order a longer period of disqualification, be disqualified for a period of twelve months from the date of the conviction for holding or obtaining a licence; and a person disqualified by virtue of a conviction under this section or of an order made thereunder for holding or obtaining a licence shall, for the purposes of Part I of the Act of 1930, be deemed to be disqualified by virtue of a conviction under the provisions of that Part.

(3) A person liable to be charged with an offence under this section shall not be liable to be charged under section twelve of the Licensing Act, 1872, with the offence of being drunk while in charge, on a highway or other public place, of a carriage.

(4) A police constable may arrest without warrant any person committing an offence under this section.

(5) Where a person convicted of an offence under this section has been previously convicted of an offence under section fifteen of the Act of 1930 otherwise than by virtue of section eleven of this Act, he shall be treated for the purposes of this section as having been previously convicted under this section.

(6) In subsection (1) of section fifteen of the Act of 1930 the words "or when in charge of" shall cease to have effect.

10.—(1) The Minister may by regulations provide that section nine of the Act of 1930 (which imposes minimum ages for the driving of motor vehicles on roads) shall have effect in relation to motor cycles, or, if it is so prescribed by the regulations, in relation to motor cycles of any class or description so prescribed, as if for the minimum age for driving there were substituted such age (not being less than sixteen years) as may be so prescribed:

Variation of minimum age for driving motor cycles on roads.

Provided that a person shall not be prohibited by virtue of regulations under this section from driving motor cycles of any class or description if at any time before the coming into force of the regulations he has held a licence comprising that class or description of motor cycles (other than a provisional licence) or if at the time of the coming into force of the regulations he holds a provisional licence, and for the purposes of this proviso "licence" means a licence to drive granted under Part I of the Act of 1930.

(2) In subsection (5) of the said section nine (which provides for treating a person as disqualified for holding or obtaining a licence if prohibited by reason of age from driving a motor vehicle of any class) after the word "class" there shall be inserted the words "or description".

(3) The power to make regulations under this section shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

11.—(1) The following enactments, that is to say—

(a) subsection (1) of section eleven of the Act of 1930 (which penalises reckless and dangerous driving),

(b) subsection (1) of section twelve of that Act (which penalises careless driving),

(c) subsections (1) and (4) of section fifteen of that Act (which penalises driving under the influence of drink or a drug), but with the omission of the reference to attempting to drive,

Application to pedal cyclists of provisions relating to certain driving offences.

- (d) section twenty of that Act (which confers powers to stop drivers and to obtain their names and addresses and to arrest them in certain cases), except so much of that section as relates to the production of licences,
 - (e) section twenty-one of that Act (which requires the giving of warnings of proposed prosecutions) in so far as it relates to offences against the said sections eleven and twelve, but with the omission of the reference to registered owners,
 - (f) section thirty-five of the Act of 1934 (which enables a charge of careless driving to be substituted on the hearing of a charge of reckless or dangerous driving),
- shall subject to the provisions of this section apply to persons riding bicycles and tricycles, not being motor vehicles, as they apply to the drivers of motor vehicles, and references in those enactments to motor vehicles, drivers and driving shall be construed accordingly.

(2) A person shall not be liable to be indicted by virtue of this section, and the maximum penalties which may be imposed on a conviction by virtue of this section for an offence under section eleven, twelve or fifteen of the Act of 1930 shall be as follows:—

- (a) in the case of a conviction under the said section eleven or fifteen, a fine of thirty pounds or, if the conviction is a second or subsequent conviction, a fine of thirty pounds or imprisonment for a term of three months;
- (b) in the case of a conviction under the said section twelve, a fine of ten pounds or, if the conviction is a second or subsequent conviction, twenty pounds.

(3) In determining whether a conviction under the said section eleven, twelve or fifteen is a second or subsequent conviction,—

- (a) where it is a conviction in connection with the driving of a motor vehicle any previous conviction by virtue of this section shall be disregarded,
- (b) where it is a conviction by virtue of this section any previous conviction in connection with the driving of a motor vehicle shall be disregarded.

Control of use
of footpaths
and bridleways
for motor
vehicle trials.

12.—(1) No person shall promote or take part in a trial of any description between motor vehicles on a footpath or bridleway unless the holding of the trial has been authorised under this section by the local authority.

(2) A local authority shall not give an authorisation under this section unless satisfied that consent in writing to the use of any length of footpath or bridleway for the purposes of the trial has

been given by the owner and by the occupier of the land over which that length of footpath or bridleway runs, and any such authorisation may be given subject to compliance with such conditions as the authority think fit.

(3) Any person who contravenes subsection (1) of this section, or fails to comply with any conditions subject to which an authorisation under this section has been granted, shall be liable on summary conviction to a fine not exceeding fifty pounds.

(4) No statutory provision prohibiting or restricting the use of footpaths or bridleways, or any specified footpath or bridleway, shall affect the holding of any trial authorised under this section; but this section shall not prejudice any right or remedy of a person as having an interest in any land.

(5) In this section the expression "local authority" means the council of a county or county borough, or in Scotland a county council or town council:

Provided that in relation to a footpath or bridleway in England or Wales for which the council of a borough, not being a county borough, or of an urban district is the highway authority, the said expression means that council.

13.—(1) Any person who promotes or takes part in a race or trial of speed on a public highway between bicycles or tricycles, not being motor vehicles, shall, unless the race or trial is authorised, and is conducted in accordance with any conditions imposed, by or under regulations under this section, be liable on summary conviction to a fine not exceeding ten pounds. Regulation of
cycle racing
on highways.

(2) The Minister, or, in relation to Scotland, the Secretary of State may by regulations authorise, or provide for authorising, for the purposes of the foregoing subsection the holding on a public highway of races or trials of speed of any class or description, or a particular race or trial of speed, in such cases as may be prescribed and subject to such conditions as may be imposed by or under the regulations, and may prescribe the procedure to be followed, and the particulars to be given, in connection with applications for authorisation under the regulations, and regulations under this section may make different provision for different classes or descriptions of races and trials.

(3) Without prejudice to any other powers exercisable in that behalf, the chief officer of police may give such directions with respect to the movement of, or the route to be followed by, vehicular traffic, during such period, as may be necessary or expedient to prevent or mitigate congestion or obstruction of traffic, or danger to or from traffic, in consequence of the holding of a race or trial of speed authorised by or under regulations

under this section, including a direction that any road or part of a road specified in the direction shall be closed during any such period to vehicles or to vehicles of a class or description so specified, and section thirty-seven of this Act shall apply in relation to directions given under this section as it applies in relation to the directions therein mentioned.

(4) The power to make regulations conferred by this section shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution by either House of Parliament.

(5) In this section the expression "public highway" does not include a footpath or bridleway.

Duty of
pedestrians
to comply
with traffic
directions
given by
constables.

14.—(1) Where a police constable in uniform is for the time being engaged in the regulation of vehicular traffic in a road, any person on foot who proceeds across or along the carriageway in contravention of a direction to stop given by the constable, in the execution of his duty, either to persons on foot or to persons on foot and other traffic, shall be guilty of an offence and liable on summary conviction to a fine not exceeding ten pounds, or in the case of a second or subsequent conviction to a fine not exceeding twenty-five pounds.

(2) A constable may require any person committing an offence against the last foregoing subsection to give his name and address, and if that person fails to do so he shall be guilty of an offence against this subsection and liable on summary conviction to a fine not exceeding five pounds.

Control of
dogs on roads.

15.—(1) Any person who causes or permits a dog to be on any designated road without the dog being held on a lead shall be liable on summary conviction to a fine not exceeding five pounds.

(2) In this section the expression "designated road" means a length of road specified by an order in that behalf of the local authority in whose area the length of road is situated.

(3) An order under this section may provide that subsection (1) thereof shall apply subject to such limitations or exceptions as may be specified in the order, and (without prejudice to the generality of this subsection) the said subsection (1) shall not apply to dogs proved to be kept for driving or tending sheep or cattle in the course of a trade or business, or to have been at the material time in use under proper control for sporting purposes.

(4) An order under this section shall not be made except after consultation with the chief officer of police, and shall not have effect unless confirmed by the Minister, or in Scotland the

Road Traffic Act, 1956

4 & 5 ELIZ. 2. CH. 67

ERRATUM

Page 15, s. 15 (6), second line

For "country"

Read "county"

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Secretary of State; and subsections (3) to (8) of section two hundred and fifty of the Local Government Act, 1933, or in Scotland subsections (4), (5), (7) and (11) to (13) of section three hundred and one of the Local Government (Scotland) Act, 1947, shall apply to orders under this section and the confirmation thereof as they apply to byelaws and the confirmation thereof.

(5) In England or Wales a local authority may institute proceedings for any offence under this section relating to a road in their area.

(6) In this section the expression "local authority" means the council of a county borough or country district, the Common Council of the City of London or the council of a metropolitan borough, or in Scotland a county council or a town council.

16.—(1) Paragraph (b) of subsection (1) of section six of the Act of 1934 (which enables an applicant who held a licence before nineteen hundred and thirty-four to obtain a licence without passing a driving test) shall cease to have effect.

Amendments
as to
exemption
from driving
test.

(2) In paragraph (a) of the said subsection (1) (which makes it a condition of the granting of a licence that the applicant satisfies the licensing authority that he has at some time passed the prescribed test) for the words "at some time" there shall be substituted the words "during the period of ten years ending on the date of coming into force of the licence applied for".

(3) The said subsection (1) shall not apply to an applicant for a licence authorising the driving of vehicles of any class or description who satisfies the licensing authority that within the period of ten years ending on the date of coming into force of the licence applied for he has held a licence authorising the driving of vehicles of that class or description, not being a licence granted by virtue of subsection (7) of section six of the Act of 1934 (which empowers the Minister to make regulations dispensing with the need to pass a test where the applicant is not resident in Great Britain).

(4) In this section the expression "licence" means a licence under Part I of the Act of 1930 other than a provisional licence.

17.—(1) The classes or descriptions of vehicles in relation to which, for the purpose of granting a licence by virtue of the passing of a prescribed test of competence to drive, the test shall be treated as having been the prescribed test shall include not only any class or description for which the test was the prescribed test when it was passed but also—

Amendments
as to groups
of vehicles
covered by
driving tests.

(a) if the test was passed before the coming into operation of this section, any other class or description for which the test was sufficient at the coming into operation of this section,

- (b) whenever the test was passed, any other class or description for which, by virtue of regulations under subsection (5) of section six of the Act of 1934, the test, or any other test declared by such regulations to be equivalent thereto, was sufficient at the time of the application for the licence, being a class or description to which this paragraph is applied by such regulations,
- (c) whenever the test was passed, any other class or description which by virtue of this section has been comprised in a licence previously granted to the applicant.

(2) A person who has been granted a licence to drive vehicles of any class or description by virtue of subsection (1) of section two of the Road Traffic (Driving Licences) Act, 1947 (which conferred rights on persons who had held provisional licences under emergency provisions to be granted licences to drive without passing a test) shall for the purposes of this section be treated as if he had, immediately before he was first so granted such a licence, passed the test sufficient at that time for that class or description of vehicles.

(3) Where the holder of a licence under Part I of the Act of 1930 surrenders it and applies under section four of the Act of 1930 for a new licence, then if by virtue of this section he is entitled to the grant of a licence comprising any class or description of vehicles not comprised in the surrendered licence, he shall, if he so requires, be granted a new licence on payment of a reduced fee of two shillings and sixpence; but a licence granted on payment of the reduced fee shall continue in force only for the period for which the surrendered licence would have continued if not surrendered.

(4) In this section the expression "licence" means a licence to drive granted under Part I of the Act of 1930, and references in this section to a test sufficient at any time for a class or description of vehicles are references to a test which at that time was the prescribed test therefor or the passing of which authorised the granting at that time of a licence comprising that class or description.

Amendments
as to
provisional
driving
licences.

18.—(1) Where application is made to a licensing authority for the grant under subsection (3) of section five of the Act of 1930 of a provisional licence with a view to the passing of a test under the said section five or under section six of the Act of 1934, then if the applicant holds a provisional licence or has held one during the period of twelve months ending on the date of coming into force of the licence applied for, and has held a previous provisional licence within the period of twelve months ending on the date of coming into force of the last provisional

licence held by him, the licensing authority may refuse to grant the licence applied for unless either—

- (a) the applicant has submitted himself to such a test as aforesaid during the currency of the last provisional licence held by him, or
- (b) he satisfies the licensing authority that he has reasonable cause for not having done so,

and (in either case) before the date of the application for the licence he has applied to submit himself to such a test to be taken within six months after the date of the application for the licence.

(2) In the said subsection (3) (which provides for the grant, on payment of a fee of five shillings, of provisional licences to drive for a period of three months) for the words “a fee of five shillings” there shall be substituted the words “such fee not exceeding ten shillings as may be prescribed” and for the word “three” there shall be substituted the word “six”.

Provision of parking places

19.—(1) The Minister may by order made on the application of the local authority in accordance with the provisions of Part I of the Third Schedule to this Act designate parking places on highways in the Metropolitan Police District or the City of London for vehicles or vehicles of any class or description specified in the order, and the local authority may make charges for vehicles left in any parking place so designated of such amount as is hereinafter specified.

Provision of parking places where charges made.

(2) In determining what parking places are to be designated under this section the Minister shall consider both the interests of traffic and those of the owners and occupiers of adjoining property, and in particular the matters to which he shall have regard shall include—

- (a) the need for maintaining the free movement of traffic, and
- (b) the need for maintaining reasonable access to premises, and
- (c) the extent to which parking accommodation (whether open or covered) otherwise than on highways is available in the neighbourhood or the provision thereof is likely to be encouraged there by the designation of parking places under this section.

(3) The exercise by a local authority of its functions under this section shall not render the authority subject to any liability in respect of the loss of or damage to any vehicle in a parking place or the contents or fittings of any such vehicle.

(4) In this and the four next following sections the expression "local authority" means the council of a county borough or county district, the Common Council of the City of London or the council of a metropolitan borough, and the expression "the local authority", in relation to a parking place or proposed parking place on any site, means that one of the said councils in whose area the site is:

Provided that in the case of a site in a metropolitan borough—

- (a) an application for an order under subsection (1) of this section may be made by the London County Council, and references in the Third Schedule to this Act to a local authority shall be construed accordingly;
- (b) subject to the next following paragraph, the London County Council shall be the local authority if the parking place is designated by an order made on their application;
- (c) at any time after the making of an order designating a parking place the council of the metropolitan borough and the London County Council may apply to the Minister for an order directing that such one of the councils as is not the local authority shall become the local authority for that parking place, and the Minister may, if he thinks fit, make an order accordingly.

(5) If it appears to the Minister that it is expedient for the purposes of this section that, with a view to experiment or demonstration, parking places on highways should be designated at any sites in the Metropolitan Police District or the City of London, and that no application under this section for the designation thereof is forthcoming, the Minister may by order made in accordance with the provisions of Part II of the Third Schedule to this Act designate those parking places for vehicles or vehicles of any class or description specified in the order, and may make charges for vehicles left in any parking place so designated of such amount as is hereinafter specified; and—

- (a) in relation to parking places designated by virtue of this subsection references in subsection (3) of this section and in the two next following sections to the local authority shall be construed as references to the Minister;
- (b) if the Minister, with the consent of the Treasury, enters into an agreement with the local authority or the London County Council for the transfer to the authority or Council of the operation of the parking place, the operation thereof, and such apparatus or other things held by, and rights or liabilities of, the Minister in connection with the parking place as may be specified

in the agreement, shall be transferred as from such date and on such terms (including terms as to the making of payments to or by the Minister) as may be so specified ;

- (c) from the taking effect of any such transfer of the operation of a parking place the order designating the parking place shall have effect subject to such modifications (if any) as the Minister may direct, being amendments appearing to him requisite in consequence of the transfer, and the provisions of this Act relating to parking places and to the variation and revocation of orders shall thereafter apply as if the parking place had been designated by order made on the application of the council to which the transfer is made.

(6) An order under the last foregoing subsection shall not continue in force for longer than two years from the coming into operation thereof together with such further period (if any) not exceeding twelve months as the Minister may by order made at any time before the expiration of the order under the last foregoing subsection prescribe :

Provided that this subsection shall cease to have effect as respects any parking place on the making in relation thereto of an agreement under paragraph (b) of the last foregoing subsection.

(7) The Minister may by order provide that subsection (1) of this section shall apply to any such area in England or Wales, in addition to the Metropolitan Police District and the City of London, as may be specified in the order.

(8) The Secretary of State may by order provide that subsection (1) of this section shall apply to any such area in Scotland as may be specified in the order ; and as respects any such area—

- (a) references to the Minister in the provisions of this Act relating to parking places shall be construed as references to the Secretary of State ;
- (b) the expression “ local authority ” in the said provisions means a county council or a town council.

(9) Nothing in this section or an order under subsection (7) or (8) of this section shall affect the operation of section ten of the London Traffic Act, 1924, section sixty-eight of the Public Health Act, 1925, or section one hundred and twenty of the Act of 1930 (which relate to the designation of parking places).

20.—(1) The amount of the charge for a vehicle left in a parking place designated under this Act shall be calculated as follows.

Amount of charges for parking and method of payment.

(2) There shall be a prescribed standard period for each parking place, and subject as hereinafter provided the amount of the charge for a vehicle left in the parking place for a time not exceeding the standard period (hereinafter referred to as the "initial charge") shall be such amount (hereinafter referred to as the "standard amount") as may be prescribed, and the initial charge shall be payable on the leaving of the vehicle in the parking place:

Provided that—

- (a) if it is so prescribed, the initial charge for a vehicle left for a time not exceeding one half of the standard period shall be one half of the standard amount, and
- (b) where the last foregoing paragraph has effect, and it is further so prescribed, then if before the end of the prescribed time a further payment of one half of the standard amount is made the two payments shall be treated as a single payment of an initial charge of the standard amount made on the leaving of the vehicle.

(3) If a vehicle is left in the parking place for longer than the period for which payment was made by the initial charge, the amount of the charge shall be the amount of the initial charge together with such additional amount (hereinafter referred to as the "excess charge") as may be prescribed, and the excess charge shall be payable in such manner and at such time as may be prescribed.

(4) If it is so provided in the order designating the parking place, there shall be apparatus of the prescribed description for indicating in the prescribed manner, as respects each space provided for the leaving of vehicles, whether the initial charge has been paid and whether the period for which payment was made by the initial charge has expired; and—

- (a) payment of the initial charge shall be made by the insertion of coins in the apparatus and the doing of any other thing prescribed for the purpose of operating the apparatus;
- (b) subject to the next following paragraph, if at any time while a vehicle is left in the parking place the apparatus relating to the space in which it is left gives the prescribed indication, it shall be presumed unless the contrary is proved that the initial charge has been duly paid and that the period for which payment was made by the initial charge has already expired;
- (c) if it is proved that the time for which the vehicle has been left in the parking place is less than the standard period, or, where paragraph (a) of the proviso to subsection (2) of this section has effect, less than half the

standard period, paragraph (b) of this subsection shall not have effect but it shall be presumed unless the contrary is proved that the initial charge has not been duly paid for the vehicle.

(5) Where no such apparatus is in use, the order designating a parking place may provide that the initial charge shall be payable on the vehicle being taken away from the parking place, and where such provision is made subsection (3) of this section shall apply with the substitution, for the reference to the period for which payment was made by the initial charge, of a reference to the standard period.

(6) An order under this Act designating a parking place may prescribe that the following provisions shall have effect in relation thereto in substitution for the four last foregoing subsections, that is to say—

- (a) the amount of the charge for a vehicle left in the parking place at any period of the day prescribed by the order shall be such amount as may be so prescribed, irrespective of the time for which the vehicle is left ;
- (b) the charge shall be payable either on the leaving of the vehicle or on its being taken away, as may be prescribed ;
- (c) if it is so prescribed, the charge shall be payable by the insertion of coins in an apparatus provided for the purpose of such description as may be prescribed and the doing of any other thing prescribed for the purpose of operating the apparatus, and, unless the contrary is proved, the charge shall be taken to have been duly paid or not to have been duly paid as may be indicated by the apparatus in the prescribed manner.

(7) Any such apparatus as is mentioned in subsection (4) or (6) of this section is hereinafter referred to as a parking meter.

(8) Where provision is made for the use of parking meters it shall be the duty of the local authority to take the prescribed steps for the periodical inspection of the meters and for dealing with any found to be out of order, and for securing the testing of the meters (both before they are brought into use and not less frequently thereafter than may be prescribed or on other prescribed occasions), and for recording in the prescribed manner the date on which and persons by whom a meter has been tested.

21.—(1) An order under this Act designating a parking place shall specify whether the parking place may be used for the leaving of vehicles at all times or between such hours only as may be specified in the order, and may provide that the parking

General provisions for regulation of parking places.

place may be used only during a specified period of the year, or may not be used on specified days, or may be used only on such days as may be specified ; and—

- (a) as respects any time during which provision is not made by the order for the leaving of vehicles in the parking place, it shall be treated for the purposes of the last foregoing and next following sections as if it were not designated under this Act, without prejudice, however, to any proceedings for an offence otherwise than under the next following section ;
- (b) where a vehicle, having been left in the parking place, remains there at the beginning of any period during which the leaving of vehicles in the parking place is authorised under this Act, then without prejudice to any rights accrued or liabilities incurred in respect of anything previously done or omitted the vehicle shall be treated for the purposes of the last foregoing and next following sections as if it had been left in the parking place at the beginning of that period.

(2) Such an order as aforesaid may revoke the designation of any place as a parking place under any of the Acts specified in subsection (9) of section nineteen of this Act, and such an order as aforesaid, or an order or regulation containing such a designation, may provide that the designation shall not have effect as respects any time during which provision is made under this Act for the leaving of vehicles in that place.

(3) Such an order as aforesaid may contain provision for determining by or under the order the positions in which vehicles left in a parking place shall stand in, and the manner in which such vehicles shall be driven into or out of, the parking place, may prohibit or restrict the waiting in a parking place, whether in the said positions or elsewhere, of other vehicles, and may contain provision for determining as aforesaid the positions in which other vehicles permitted by the order to wait in the parking place, or to wait there for any purpose specified in the order, shall wait there.

(4) Such an order as aforesaid may exempt from the payment of any charge vehicles left in the parking place in such circumstances as may be specified in the order, subject however to any conditions so specified.

(5) The Minister may by order provide that the time for which a vehicle may be left in a parking place designated under this Act after the excess charge has been incurred shall not exceed such time as may be prescribed ; but any such provision of an order shall be without prejudice to the liability to the excess charge.

(6) The Minister may, as respects parking places designated as aforesaid for which there is a prescribed standard period, by order provide that a vehicle which has been taken away from the place where it was left in any such parking place shall not again be left in that parking place until after the expiration of such interval as may be prescribed.

(7) The Minister may by order empower the local authority, the chief officer of police, or any other person specified by or under the order, to provide for the moving, in case of emergency, of vehicles left in a parking place, to suspend the use of a parking place or any part thereof on such occasions or in such circumstances as may be determined by or under the order, and to provide for the temporary removal of any parking meters installed at a parking place.

(8) The Minister may by order make such incidental or consequential provision as appears to him requisite for the purposes of the satisfactory operation of parking places designated under this Act, including in particular (but without prejudice to the generality of this subsection) provision—

- (a) for prohibiting or restricting the carrying on of trades or other activities, or the doing of any other thing, at the parking places,
- (b) for altering the position in a parking place of vehicles left there in contravention of the provisions of an order of the Minister as to the manner in which vehicles shall stand therein, and for the removal from parking places, and safe custody, of vehicles left there in contravention of the provisions of such an order and the recovery of the cost of removal and safe custody,
- (c) as respects any parking place for which there is a prescribed standard period, for preventing the postponement, by the insertion of additional coins in a parking meter, of the indication of the time after which the excess charge is incurred,
- (d) for conferring on the local authority powers of acquiring (whether by purchase or hiring) and installing parking meters, of illuminating parking places, and of erecting notices or signs and carrying out work on or in the vicinity of a parking place.

22.—(1) Any person who—

- (a) being the driver of a vehicle, leaves the vehicle in a parking place designated under this Act otherwise than as authorised by an order thereunder or leaves the vehicle therein for longer after the excess charge has been incurred than the time prescribed under subsection (5) of the last foregoing section, or fails duly to pay any charge payable under section nineteen of this

Offences
relating to
parking
places.

Act, or contravenes or fails to comply with any provision of an order relating to the parking place as to the manner in which vehicles shall stand in, or be driven into or out of, the parking place, or

(b) whether being the driver of a vehicle or not, otherwise contravenes or fails to comply with any order of the Minister under this Act relating to a parking place,

shall be liable on summary conviction to a fine not exceeding five pounds or in the case of a second or subsequent offence to a fine not exceeding ten pounds.

(2) In relation to an offence under paragraph (a) of the last foregoing subsection of leaving a vehicle for longer after the excess charge has been incurred than the time prescribed under subsection (5) of the last foregoing section, or failing duly to pay any charge payable under section nineteen of this Act, the reference in the said paragraph (a) to the driver of a vehicle shall be construed as references to the person driving the vehicle at the time it was left in the parking place.

(3) Any person who, with intent to defraud, interferes with any parking meter or operates or attempts to operate a parking meter by the insertion of objects other than current coins of the appropriate denomination shall be liable on summary conviction to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months or to both such fine and such imprisonment.

(4) Where, in any proceedings in England and Wales for an offence under this section of failing to pay any charge, it is proved that the amount which has become due, or any part of that amount, has not been duly paid, the court shall order the payment of the sum not paid, and any sum ordered to be paid by virtue of this subsection shall be recoverable as a penalty.

(5) In any proceedings for an offence under this section it shall be assumed, unless the contrary is shown, that any apparatus provided in a parking place, being an apparatus operated by the insertion of coins, is of the prescribed description.

(6) Where in any proceedings for an offence under this section of failing to pay an excess charge it is not proved that the excess charge had become due, but is proved that the initial charge has not been paid, the defendant may be convicted of an offence under this section of failing to pay the initial charge.

(7) In England or Wales a local authority may institute proceedings for any offence under this section in connection with a parking place for which they are the local authority.

Parking places: 23.—(1) A local authority shall keep an account of their financial income and expenditure in respect of parking places designated provisions. under this Act for which they are the local authority.

(2) At the end of each financial year any deficit in the account shall be made good out of the general rate fund and any surplus shall be applied for all or any of the purposes specified in the next following subsection, and in so far as not so applied shall be appropriated to the carrying out of some specific project falling within those purposes and carried forward until applied to the carrying out thereof:

Provided that if the local authority so determine, any amount not applied in any financial year may instead of being or remaining appropriated as aforesaid be carried forward in the account kept under subsection (1) of this section to the next financial year, but shall not be carried forward from one quadrennial period to another without the consent of the Minister.

(3) The said purposes are the following, that is to say:—

- (a) the making good to the general rate fund of any amounts charged to that fund under the last foregoing subsection in the four years immediately preceding the financial year in question;
- (b) meeting all or any part of the cost of the provision and maintenance by the local authority of parking accommodation for vehicles otherwise than on highways and whether in the open or under cover;
- (c) the making to other local authorities, to any county council, or, with the consent of the Minister, to other persons, of contributions towards the cost of the provision and maintenance by them in the area of the local authority or elsewhere of parking accommodation for vehicles otherwise than on highways and whether in the open or under cover.

(4) This section shall apply to the London County Council and the Common Council of the City of London with the substitution for references to the general rate fund of references respectively to the county fund and the general rate of the City.

(5) In this section the expression “quadrennial period” means, in relation to a local authority, a period beginning with the date when the local authority first keep the account required by subsection (1) of this section and ending with the fourth complete financial year after that date, or a period of four years beginning immediately after the expiration of a quadrennial period.

24.—(1) In the provisions of this Act relating to parking **Parking places:** places the expression “prescribed” means prescribed by order **supplementary provisions.** of the Minister.

(2) Anything authorised or required by the said provisions to be prescribed or to be done by order of the Minister may, save

as otherwise expressly required, be prescribed or done either by an order designating a parking place or by a general order.

(3) Any power to make an order conferred by the provisions of this Act relating to parking places shall be exercisable by statutory instrument.

(4) An order under subsection (7) or (8) of section nineteen of this Act shall not have effect unless approved by resolution of each House of Parliament.

(5) A statutory instrument embodying any order under the provisions of this Act relating to parking places other than subsections (7) and (8) of section nineteen of this Act shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Charges for
parking
vehicles in
Royal Parks.

25. Regulations under section two of the Parks Regulation (Amendment) Act, 1926, may make provision for imposing and recovering charges for the leaving of vehicles, or vehicles of any class or description, in any park to which that Act applies; and regulations made by virtue of this section may make, as respects charges and penalties recoverable under the regulations, provision corresponding with the provisions of subsection (4) of section twenty-two of this Act.

Provisions as to enforcement

Penalties and
disqualifica-
tions.

26.—(1) The following provisions shall have effect as respects penalties and disqualifications which a person is liable to incur on a conviction for an offence under section eleven (reckless or dangerous driving), section twelve (careless driving) or section fifteen (driving under the influence of drink or a drug) of the Act of 1930 in connection with the driving of a motor vehicle, that is to say:—

- (a) a fine imposed on summary conviction for a first offence under the said section eleven may be of an amount not exceeding one hundred pounds and may be imposed in addition to any imprisonment awarded by the court, and any imprisonment awarded on summary conviction for a second or subsequent offence under that section may be for a term not exceeding six months;
- (b) the disqualification required to be imposed by subsection (3) of the said section eleven (which requires the court, except in special circumstances, to impose a disqualification on a second or subsequent conviction for an offence under that section) shall be for a period of not less than nine months unless more than three years have elapsed since the offender's last conviction under that section;

- (c) a fine imposed on a first conviction for an offence under the said section twelve may be of an amount not exceeding forty pounds and a fine imposed on a second conviction for such an offence may be of an amount not exceeding eighty pounds and may be imposed in addition to any imprisonment awarded by the court, and subsection (2) of that section (which limits the period for which the court may disqualify an offender on a first or second conviction) shall not apply to a second conviction ;
- (d) a fine imposed on summary conviction for a first offence under the said section fifteen may be of an amount not exceeding one hundred pounds and may be imposed in addition to any imprisonment awarded by the court, and the imprisonment awarded on summary conviction for a second or subsequent offence under that section may be for a term not exceeding six months ; and any imprisonment awarded on a conviction on indictment for an offence under that section may be for a term not exceeding two years ;

and a fine imposed on a conviction for contravening an order made under the powers conferred by subsection (2) of section forty-six of the Act of 1930 (under which orders may be made prohibiting or restricting the use of vehicles on specified roads) may be of an amount not exceeding in the case of a first conviction twenty pounds and in the case of a second or subsequent conviction fifty pounds.

(2) In subsection (1) of section six of the Act of 1930 (which provides for disqualifications for holding a licence, and for the endorsement of licences, on conviction of criminal offences in connection with the driving of a motor vehicle, other than offences under Part IV of that Act) for the reference to any such offence as aforesaid there shall be substituted a reference to the offences specified in the Fourth Schedule to this Act.

(3) Without prejudice to the powers conferred by the said subsection (1), so much of the Act of 1930 as provides that a person convicted of an offence shall be, or shall be ordered to be, disqualified for holding or obtaining a licence shall not apply to a person convicted of aiding, abetting, counselling or procuring, or inciting to, the commission of the offence.

(4) Subsection (3) of section six of the Act of 1934 (which empowers a court, on the conviction of a person for an offence of reckless, dangerous or careless driving, to order that he be disqualified from driving until he has passed a driving test) shall apply to offences under section fifteen of the Act of 1930 (which relates to driving under the influence of drink or a drug) committed in respect of motor vehicles.

Duration of driving disqualifications.

27.—(1) No application shall be made under subsection (3) of section seven of the Act of 1930 for the removal of a disqualification before the expiration of whichever is relevant of the following periods from the date of the conviction, or order made in consequence of a conviction, by virtue of which the disqualification was imposed, that is to say—

- (a) six months, if the disqualification is for less than a year,
- (b) one half of the period of the disqualification, if it is for less than six years but not less than a year,
- (c) three years, in any other case.

(2) In determining the expiration of the period for which a person is disqualified by virtue of a conviction under the Act of 1930 of by an order made in consequence of such a conviction, or after which under the last foregoing subsection a person may apply for the removal of such a disqualification, any time after the conviction during which the disqualification was suspended or he was not disqualified shall be disregarded.

Appeal against finding of no special reasons for not disqualifying.

28. A person disqualified by virtue of a conviction under the Act of 1930 may appeal against the disqualification in the same manner as against a conviction, and the court by or before whom he was convicted may, if it thinks fit, pending the appeal suspend the disqualification.

Offences against s. 35 of Act of 1930.

29.—(1) A person charged with using a motor vehicle in contravention of section thirty-five of the Act of 1930 (which provides for compulsory third-party insurance) shall not be convicted if he proves that the vehicle did not belong to him and was not in his possession under a contract of hiring or of loan, that he was using the vehicle in the course of his employment and that he neither knew nor had reason to believe that there was not in force in relation to the vehicle such a policy of insurance or security as complied with the requirements of Part II of that Act.

(2) In subsection (2) of the said section thirty-five the words from “and a person convicted” to the end of the subsection shall cease to have effect.

(3) In section six of the Act of 1930 the proviso to subsection (1) (which empowers a court to limit a driving disqualification to the driving of a motor vehicle of the same class or description as the vehicle in which the offence was committed) shall cease to have effect.

Extension of provisions as to warning of intended prosecution.

30. Section twenty-one of the Act of 1930 (which provides that a person may not be convicted of excessive speed, reckless or dangerous driving, or careless driving unless either warned at the time of the possibility of his being prosecuted or within fourteen days thereafter either summoned for the offence or

notified that he is to be prosecuted) shall apply to offences under sections forty-nine and fifty of that Act (which relate respectively to failure to obey traffic directions or to conform with instructions given by traffic signs and to leaving vehicles on roads in dangerous positions).

31.—(1) Where a person's licence to drive has been revoked under subsection (4) of section five of the Act of 1930 (which provides for the revocation of licences on grounds of safety) then if he fails to deliver the licence as required by that subsection a police constable may require him to produce it and may on production seize it and deliver it to the licensing authority for cancellation.

Additional provisions as to production and surrender of driving licences, etc.

(2) Where a police constable has reasonable cause to believe that the person to whom a licence has been granted under Part I of the Act of 1930, or any other person, has knowingly made a false statement for the purpose of obtaining the grant of the licence, the constable may require the holder of the licence to produce it to him.

(3) If any person required under the foregoing provisions of this section to produce a licence fails to do so he shall be guilty of an offence and liable on summary conviction to a fine not exceeding five pounds:

Provided that if within five days after the production of his licence was so required he produces the licence in person at such police station as may have been specified by him at the time its production was required, he shall not be convicted of an offence under this subsection.

(4) Subsection (5) of section four and subsection (1) of section forty of the Act of 1930 (under which a person driving a motor vehicle on a road may be required by a police constable to produce his licence for examination and to give his name and address and the name and address of the owner of the vehicle and to produce his certificate of insurance or similar document) shall have effect as if the references therein to a person driving a motor vehicle included references to—

(a) any person whom a police constable has reasonable cause to believe to have been the driver of a motor vehicle at a time when an accident occurred owing to its presence on a road ;

(b) any person whom a police constable has reasonable cause to believe to have committed an offence in relation to the use of a motor vehicle on a road ; and

(c) any person who accompanies the holder of a provisional licence granted under subsection (3) of section five of

the Act of 1930 while the holder is driving a motor vehicle on a road or whom a police constable has reasonable cause to believe to have accompanied the holder of such a licence while driving at a time when an accident occurred owing to the presence of the vehicle on a road or at a time when an offence is suspected of having been committed by the said holder in relation to the use of the vehicle on a road,

and, in relation to a vehicle to which section two of this Act applies, as if references to a certificate of insurance included references to a test certificate issued as mentioned in subsection (1) of that section:

Provided that the obligation to produce a certificate of insurance or similar document or a test certificate shall not apply to any such person as is specified in paragraph (c) of this subsection.

(5) Subsection (4) of section one hundred and twelve of the Act of 1930 (which provides for the seizure and disposal of documents in relation to which an offence has been committed under that section) shall apply in relation to a licence, certificate or other document produced in pursuance of this section as it applies in relation to documents produced in pursuance of the provisions of that Act.

**Extension of
s. 113 (3) of
Act of 1930.**

32.—(1) Subsection (3) of section one hundred and thirteen of the Act of 1930 (which gives powers to obtain information as to the identity of the driver of a vehicle who is alleged to have committed an offence under that Act) shall apply to offences under the Road Transport Lighting Acts, 1927 to 1953, offences under the provisions of this Act relating to parking places, offences against regulations made under section ten of the London Traffic Act, 1924, and offences against any other enactment relating to the use of vehicles on roads, and subsection (2) of section forty-one of the Criminal Justice Act, 1948 (which provides for proof, in proceedings for certain traffic offences, of admissions as to the identity of the driver or owner of a vehicle) shall apply to any offence to which the said subsection (3) applies; and in the case of any offence under the provisions of this Act relating to parking places the power conferred by the said subsection (3) to require information shall be exercisable either by or on behalf of the chief officer of police or, in writing, by or on behalf of the local authority for the parking place in question.

(2) References in the said subsection (3) to the driver of a vehicle shall include references to the person riding a bicycle or tricycle, not being a motor vehicle.

Traffic Regulation

33.—(1) The powers conferred by subsection (2) of section Amendment forty-six of the Act of 1930 (which authorises the making of of s. 46 of Act orders regulating traffic on roads) shall be exercisable as respects of 1930. any road where it appears to the council or Minister exercising the power that it is expedient so to do—

- (a) for avoiding danger to persons or other traffic using the road or any other road, or
- (b) for preventing damage to the road or to any building on or near the road, or
- (c) for facilitating the passage of vehicular traffic on the road or any other road, or
- (d) for preventing the use of the road by vehicular traffic of a kind which, or the use thereof by such traffic in a manner which, is unsuitable having regard to the existing character of the road or adjoining property, or
- (e) without prejudice to the generality of the last foregoing paragraph, for preserving the character of the road in a case where it is specially suitable for use by persons on horseback or on foot,

and subsection (1) of the said section forty-six (which makes provision for prohibiting or restricting the driving of vehicles in the interests of safety) shall cease to have effect; but the repeal of that subsection shall not affect any order in force at the coming into operation of this section, and any such order so far as made, or having effect as if made, under the said subsection (1) shall have effect as if made under subsection (2) of the said section forty-six by virtue of this section.

(2) The provision which may be made by order under the said subsection (2) shall be any provision prohibiting, restricting or regulating the use of a road or any part of the width thereof by vehicular traffic or by such traffic of any class or description specified in the order, either generally or subject to exceptions so specified, and either at all times or at times, on days or during periods so specified, and, without prejudice to the generality of this subsection, any provision—

- (a) requiring such traffic to proceed in a specified direction or prohibiting its so proceeding,
- (b) specifying the part of the carriageway to be used by such traffic proceeding in a specified direction,
- (c) prohibiting or restricting the waiting of vehicles or the loading and unloading of vehicles,
- (d) prohibiting the use of roads by through traffic.

(e) prohibiting or restricting overtaking,

(f) regulating the speed of vehicles :

Provided that no prohibition or restriction on waiting imposed under the powers conferred by the said subsection (2) shall apply to any stage carriage or express carriage.

(3) An order made in the exercise of the said powers by any council to which the said section forty-six applies which contains no provision other than provision—

(a) imposing any such requirement, prohibition or restriction as is specified in paragraph (a), (b) or (c) of the last foregoing subsection, or

(b) prohibiting or restricting the use of footpaths or bridleways by bicycles and tricycles, or

(c) revoking or varying any such requirement, prohibition or restriction,

shall not require confirmation by the Minister except where the next following subsection has effect :

Provided that—

(i) this subsection shall not apply to any trunk road ; and

(ii) where before the coming into operation of this section an order has been submitted to the Minister for confirmation but the Minister has neither confirmed the order nor determined not to confirm it, the order may be proceeded with as if this subsection had not been passed.

(4) Where the Minister revokes, varies or amends an order made by virtue of the last foregoing subsection relating to any length of road, any order imposing or varying, as respects that length of road, any such requirement, prohibition or restriction as is specified in that subsection and made within twelve months after the revocation, variation or amendment by the Minister shall be subject to confirmation by the Minister to the like extent as if the last foregoing subsection had not been passed.

(5) The following provisions shall have effect as respects the proviso to subsection (2) of the said section forty-six (under which no order may be made with respect to a road which would have the effect of preventing reasonable access for vehicles of any class or description to premises on or adjacent to the road) :—

(a) for the purposes of the application of the said proviso to vehicles of any class or description premises shall be treated as adjacent to a road, whatever their distance therefrom, if they are accessible for vehicles of that class or description from, and only from, that road ;

- (b) the said proviso shall not have effect in relation to an order confirmed or made by the Minister in so far as the authority making the order is satisfied that, for avoiding danger to persons or other traffic using the road to which the order relates or any other road, or for preventing damage to the road or buildings on or near it, it is requisite that the said proviso should not apply, and it is stated in the order that the said authority is satisfied as aforesaid ;
- (c) a restriction on the loading or unloading of goods shall in no circumstances be treated as preventing such access as may be reasonably required if the restriction does not prevent loading or unloading for more than six hours in all in any consecutive period of twenty-four hours.
- (6) In subsection (8) of the said section forty-six (which specifies the councils to which that section applies) the reference to urban districts shall (but subject to subsection (8) of this section) include, and be deemed always to have included, a reference to boroughs, not being county boroughs.
- (7) The power conferred by subsection (6) of section twenty-nine of the Road and Rail Traffic Act, 1933, of making regulations for prescribing procedure shall include power to make regulations for prescribing the procedure to be followed in connection with the making by a council of an order which by reason of subsection (3) of this section does not require confirmation and the holding of inquiries in connection therewith.
- (8) The said section forty-six, and subsections (4) to (6) of the said section twenty-nine, shall cease to apply as respects the London Traffic Area, without prejudice, however, to any order made, or having effect as if made, thereunder before the coming into operation of this section, and any such order in so far as it relates to the London Traffic Area may be varied or revoked by regulations under section ten of the London Traffic Act, 1924.
- (9) In subsection (2) of section forty-six of the Act of 1930 for the words from "for any" to "of traffic" there shall be substituted the words "containing any such provision as is specified in subsection (2) of section thirty-three of the Road Traffic Act, 1956," and in subsection (4) of section twenty-nine of the Road and Rail Traffic Act, 1933, for the words from "restricting" to "1930" there shall be substituted the words "under subsection (2) of section forty-six of the Road Traffic Act, 1930 which".
- (10) In the application of this section to Scotland for references to the Minister there shall be substituted references to the Secretary of State.

Amendments
as to traffic
regulation
during road
repairs, etc.

34.—(1) Where under section forty-seven of the Act of 1930 (which provides for traffic regulation in consequence of the execution of works) a highway authority make an order under subsection (1) of that section or issue a notice under subsection (6) of that section, the authority may by order make as respects any alternative road any such provision as is specified in paragraph (a), (b) or (c) of subsection (2) of the last foregoing section:

Provided that where the highway authority for the road as respects which the order or notice under the said section forty-seven is made or issued is not the highway authority for the alternative road, then—

(a) if the alternative road is a trunk road, the power to make orders conferred by this subsection shall be exercisable by the Minister on the application of the highway authority for the other road;

(b) in any other case, the order under this subsection shall not be made except with the consent of the highway authority for the alternative road.

(2) In connection with the making of an order under the last foregoing subsection the authority making the order shall publish the like notices within the like time, and in the like manner, as is required by subsection (2) of the said section forty-seven in the case of an order under that section:

Provided that the notices required by this subsection need not contain any description of alternative routes.

(3) Subsection (4) of the said section forty-seven (which limits the time for which orders under that section may continue in force without the approval of the Minister) shall apply to orders under subsection (1) of this section made by highway authorities other than the Minister, and subsection (7) of the said section forty-seven (which relates to offences) and subsection (9) of that section (which contains a saving for tramcars and trolley vehicles) shall apply to orders under subsection (1) of this section.

(4) The proviso to subsection (2) of section forty-six of the Act of 1930 (under which no order is to be made which would have the effect of preventing reasonable access) shall apply in relation to orders under subsection (1) of this section as it applies in relation to orders under the said subsection (2), subject however to the provisions of subsection (5) of the last foregoing section.

(5) In subsection (1) of the said section forty-seven for the reference to works being executed or proposed to be executed on a road there shall be substituted a reference to works being executed or proposed to be executed on or near a road.

(6) Subsection (8) of the said section forty-seven (which provides for an appeal to the Minister against restrictions and prohibitions imposed under that section) shall cease to have effect; but—

(a) subsection (4) of the said section forty-seven shall as respects any order to which it applies have effect with the substitution for the words “three months” of the words “six weeks”;

(b) where the Minister has refused to approve the continuing in force of an order made under the said section forty-seven, then except with the approval of the Minister no subsequent order shall be made under that section as respects any length of road to which the previous order related unless at least three months have expired from the time when the previous order ceased to have effect:

Provided that nothing in this subsection shall apply to any order under the said section forty-seven made before the coming into operation of this section.

(7) The maximum period for which a notice under subsection (6) of the said section forty-seven may continue in force shall be extended from seven days from the date of the notice to fourteen days therefrom.

(8) The provision which may be made by order under subsection (1) or notice under subsection (6) of the said section forty-seven shall be any such provision as is mentioned in subsection (2) of the last foregoing section.

(9) An order under subsection (1) or notice under subsection (6) of the said section forty-seven, or an order under subsection (1) of this section, may suspend any statutory provision of a description which could have been contained in the order or notice or, in the case of an order under subsection (1) of this section, any such provision as is mentioned in paragraph (d) of subsection (2) of the last foregoing section, and any such provision (other than one contained in the order or notice) shall have effect subject to the order or notice.

(10) In subsection (1) of this section the expression “alternative road”, in relation to a road as respects which an order under subsection (1), or notice under subsection (6), of the said section forty-seven is made or issued, means a road providing an alternative route for traffic diverted from the first-mentioned road or from any other alternative road, or capable of providing such an alternative route apart from any statutory provision authorised by the last foregoing subsection to be suspended by an order under subsection (1) of this section.

(11) In the application of this section to Scotland, for references to the Minister there shall be substituted references to the Secretary of State.

Traffic signs.

35.—(1) In Part III of the Act of 1930 and in this Act the expression “traffic sign” shall mean any object or device (whether fixed or portable) for conveying warnings, information, requirements, restrictions or prohibitions of any description prescribed or authorised under subsection (2) of section forty-eight of the Act of 1930 to traffic on roads or any specified description of traffic, and any line or mark on a road for conveying such warnings, information, requirements, restrictions or prohibitions.

(2) In subsection (4) of the said section forty-eight (which requires a highway authority to secure the removal of unauthorised traffic signs and similar objects) for the words “The highway authority shall” there shall be substituted the words “The highway authority may”, for the words from “any traffic sign” to “such a sign” there shall be substituted the words “any object or device (whether fixed or portable) for the guidance or direction of persons using roads”, the proviso to the said subsection (4) shall cease to have effect, and in subsection (5) of that section after the word “object” there shall be inserted the words “or device”.

(3) References in any enactment (including an enactment contained in this Act) to the erection or placing of traffic signs shall include references to the display thereof in any manner, whether or not involving fixing or placing.

(4) For the purposes of subsection (2) of the said section forty-eight (which provides that traffic signs shall be of the prescribed size, colour and type except where a sign of another character is authorised) illumination, whether by lighting or by the use of reflectors or reflecting material, or the absence of such illumination, shall be part of the type or character of a sign.

(5) The power conferred by subsection (5) of section forty-eight of the Act of 1930 to give directions for the removal of a traffic sign shall include power to give directions for the placing of a traffic sign of any prescribed type or authorised character specified in the directions or for replacing a sign so specified by, or converting it into, a sign of another prescribed type or authorised character so specified.

(6) In subsection (7) of section forty-eight of the Act of 1930 (which confers default powers) for the words “effect the removal” there shall be substituted the words “carry out the work required by the direction”; and any direction under subsection (5) or (6) of that section—

- (a) if relating to a road or bridge in England or Wales, shall be enforceable on the application of the Minister by mandamus;
- (b) if relating to a road or bridge in Scotland, shall be enforceable by order of the Court of Session on an application by the Lord Advocate under section ninety-one of the Court of Session Act. 1868.

(7) In section forty-nine of the Act of 1930 (which makes it an offence to fail to conform to the indication given by certain traffic signs lawfully placed on or near roads) the words " being a sign for regulating the movement of traffic or indicating the route to be followed by traffic, and being " shall cease to have effect, but for the purposes of that section a traffic sign shall not be treated as having been lawfully placed unless either—

- (a) the indication given by the sign is an indication of a statutory prohibition, restriction or requirement,
- (b) the sign has been placed in the exercise of the powers conferred by section thirty-eight of this Act, or
- (c) it is expressly provided by the regulations under section forty-eight of the Act of 1930 prescribing the type of sign in question, or the authorisation under that section authorising the erection or retention of the sign in question, that the said section forty-nine shall apply to signs of that type or, as the case may be, to that sign,

and where the indication mentioned in paragraph (a) of this subsection is of the general nature only of the prohibition, restriction or requirement to which the sign relates a person shall not be convicted of failure to comply with the indication unless he has failed to comply with the said prohibition, restriction or requirement.

(8) So much of subsection (2) of section one hundred and thirteen of the Act of 1930 as provides for imprisonment in the case of second or subsequent convictions shall not apply to convictions of offences under section forty-nine of that Act.

36.—(1) Where it appears to the Commissioner of Police expedient so to do for the purpose of carrying out within his area an experimental scheme of traffic control, he may with the consent of the Minister, and after giving such notice as the Minister may direct, make regulations for regulating vehicular traffic in any manner specified in the Fifth Schedule to this Act. Experimental traffic schemes in London.

(2) Any provision contained in regulations under this section may be made so as to apply at all times or on specified days or during specified periods, and either throughout the day or during any specified part of the day, and to vehicular traffic generally or to such traffic of any class or description specified in the regulations, and regulations under this section may make different provision for different classes or descriptions of traffic.

(3) For the purpose of giving notice of any prohibition, restriction or requirement imposed by regulations under this section a constable or any person acting under the instructions

(whether general or specific) of the Commissioner of Police may place on any highway, or on any structure on any highway, traffic signs of any size, colour and type prescribed or authorised under section forty-eight of the Act of 1930; and nothing in subsection (3) of the said section forty-eight (which prohibits the placing of traffic signs on or near roads except in accordance with the preceding provisions of that section) shall apply to traffic signs placed by a constable, or any person acting as aforesaid, on any land for the purpose aforesaid.

(4) If any person contravenes or fails to comply with regulations under this section he shall be liable on summary conviction to a fine not exceeding twenty pounds or, in the case of a second or subsequent offence, to a fine not exceeding fifty pounds.

(5) Regulations under this section may suspend or modify regulations made by the Minister under section ten of the London Traffic Act, 1924 (which enables regulations to be made for controlling and regulating traffic in the London Traffic Area).

(6) Regulations under this section shall not continue in force for a period longer than six months after the making thereof, together with such further period (if any) not exceeding twelve months as the Minister may at any time before the expiration of the regulations direct; and (without prejudice to the power of the Commissioner of Police to revoke regulations under this section) such regulations may be revoked by regulations of the Minister under section ten of the London Traffic Act, 1924.

(7) A document purporting to be a copy, certified by a person authorised by the Commissioner of Police, of regulations under this section shall be evidence of the contents of such regulations.

(8) This section shall apply within the Metropolitan Police District and the City of London but not elsewhere; and in this section "the Commissioner of Police" means in relation to the Metropolitan Police District the Commissioner of Police of the Metropolis, and in relation to the City of London the Commissioner of Police for the City of London.

Powers of police to erect traffic signs relating to special traffic regulations.

37.—(1) A constable, or any person acting under the instructions (whether general or specific) of the chief officer of police, may place on any highway, or on any structure on any highway, traffic signs of any size, colour and type prescribed or authorised under section forty-eight of the Act of 1930, being signs indicating prohibitions, restrictions or requirements relating to vehicular traffic, as may be requisite for giving effect to regulations, orders or directions made or given under section fifty-two of the Metropolitan Police Act, 1839, under section twenty-two of the local Act of the second and third year of the reign of

Queen Victoria, chapter ninety-four, or under section twenty-one of the Town Police Clauses Act, 1847, or under section three hundred and eighty-five of the Burgh Police (Scotland) Act, 1892, or any corresponding provision contained in a local Act relating to any part of Scotland.

(2) Nothing in subsection (3) of section forty-eight of the Act of 1930 shall apply to traffic signs placed on any land for the purpose aforesaid by a constable or any person acting as aforesaid.

38.—(1) A constable, or any person acting under the instructions (whether general or specific) of the chief officer of police, may place on any highway, or on any structure on any highway, traffic signs of any size, colour and type prescribed or authorised under section forty-eight of the Act of 1930, being signs indicating prohibitions, restrictions or requirements relating to vehicular traffic, as may be necessary or expedient to prevent or mitigate congestion or obstruction of traffic, or danger to or from traffic, in consequence of extraordinary circumstances. Temporary signs for dealing with traffic congestion and danger.

(2) Nothing in subsection (3) of section forty-eight of the Act of 1930 shall apply to traffic signs placed on any land for the purpose aforesaid by a constable or any person acting as aforesaid.

(3) The power to place signs conferred by this section shall include power to maintain any sign for a period of seven days or less from the time when it was placed, but no longer.

Public service vehicles

39.—(1) For the purposes of the Act of 1930 the expressions "public service vehicle", "stage carriage", "express carriage" and "contract carriage" shall have the meanings assigned to them respectively by the provisions of this section, subject however to the provisions of the next following section; and any enactment (other than the Act of 1930) or instrument in which apart from this Act any of those expressions would have the same meanings as in the Act of 1930 or meanings derived therefrom shall be construed accordingly. Meaning of "public service vehicle", "stage carriage", "express carriage" and "contract carriage".

(2) A public service vehicle is a motor vehicle used for carrying passengers for hire or reward which either—

- (a) is carrying passengers at separate fares, or
- (b) is not carrying passengers at separate fares but is adapted to carry eight or more passengers.

In this subsection the expression "motor vehicle" does not include a tramcar or a trolley vehicle.

(3) A stage carriage is a public service vehicle carrying passengers at separate fares, not being an express carriage.

(4) An express carriage is a public service vehicle carrying passengers at separate fares none of which is less than one shilling; and for the purposes of this subsection—

(a) a composite fare for more than one journey shall not be regarded as representing the aggregate of fares of any less amount, and

(b) no account shall be taken of any fare which is charged in the case of passengers of particular descriptions if a fare of one shilling or more is charged for the like service in the case of all passengers not falling within any of those descriptions.

(5) A contract carriage is a public service vehicle not carrying passengers at separate fares.

(6) The Minister may by regulations under the Act of 1930 provide that subsection (4) of this section shall have effect as if for the references therein to one shilling there were substituted references to such greater sum as may be specified in the regulations.

Circumstances
affecting
classification of
vehicles under
last foregoing
section.

40.—(1) A vehicle carrying passengers at separate fares in circumstances in which the conditions set out in Part I, II, III or IV of the Sixth Schedule to this Act are fulfilled shall be treated as not being a public service vehicle unless it is adapted to carry eight or more passengers.

(2) A public service vehicle carrying passengers at separate fares shall be treated as a contract carriage, and not as a stage carriage or an express carriage, when used in circumstances in which the conditions set out in either Part III or Part IV of the Sixth Schedule to this Act are fulfilled.

(3) For the purposes of this and the last foregoing section and of the Sixth Schedule to this Act—

(a) a vehicle is to be treated as carrying passengers for hire or reward if payment is made for, or for matters which include, the carrying of passengers, irrespective of the person to whom the payment is made;

(b) a payment made for the carrying of a passenger shall be treated as a fare notwithstanding that it is made in consideration of other matters in addition to the journey and irrespective of the person by or to whom it is made;

(c) a payment shall be treated as made for the carrying of a passenger if made in consideration of a person being given a right to be carried, whether for one or more journeys and whether or not the right is exercised;

- (d) in any case where one or more passengers are being carried for hire or reward otherwise than in the course of a business of carrying passengers, the vehicle shall be treated as carrying passengers at separate fares.

Miscellaneous and Supplementary Provisions

41. For the purposes of the Road Transport Lighting Acts, ^{Lighting-up} 1927 to 1953, the expression "the hours of darkness" shall mean ^{time.} the time between half-an-hour after sunset and half-an-hour before sunrise as well during the period of summer time as during the remainder of the year.

42.—(1) The Minister may make regulations prescribing (by reference to shape, construction or any other quality) types of helmet recommended as affording protection to persons on or in motor cycles, or motor cycles of different classes or descriptions, from injury in the event of accident. ^{Protective helmets for motor-cyclists.}

(2) If any person sells, or offers for sale, any helmet as a helmet for affording protection as aforesaid, and the helmet is neither—

(a) of a type prescribed under this section, nor

(b) of a type authorised under regulations made under this section and sold or offered for sale subject to any conditions specified in the authorisation,

he shall be liable on summary conviction in the case of a first offence to a fine not exceeding twenty pounds, or in the case of a second or subsequent offence to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months or to both such fine and such imprisonment:

Provided that a person shall not be convicted of an offence under this section in respect of the sale or offer for sale of a helmet if he proves that it was sold or, as the case may be, offered for sale for export from Great Britain.

(3) In England or Wales the council of a county, of a borough or of an urban district or the Common Council of the City of London may institute proceedings for an offence under this section.

(4) The provisions of the Seventh Schedule to this Act shall have effect in relation to contraventions of this section.

(5) In this section and in the said Schedule the expression "helmet" includes any head-dress, and references in this section to selling or offering for sale include respectively references to letting on hire and offering to let on hire.

(6) The power to make regulations conferred by this section shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

Amendments
as to conditions
of carriers'
licences.

43.—(1) The grounds on which a licence under Part I of the Road and Rail Traffic Act, 1933, may be revoked or suspended under subsection (1) of section thirteen of that Act (which provides for the revocation or suspension of such a licence on the ground that any of the conditions of the licence have not been complied with), or a direction may be given under subsection (3) of that section, shall include the ground that the holder of the licence or any servant or agent of his has, in relation to an authorised vehicle, been convicted of contravening or failing to comply with any statutory provision (however expressed) relating to—

- (a) the maintenance of vehicles in a fit and serviceable condition, or
- (b) limits of speed and weight, laden and unladen, and the loading of goods vehicles, or
- (c) the time for which drivers of such vehicles as are regulated by section nineteen of the Act of 1930 may remain continuously on duty and the hours which they are to have for rest, or
- (d) the keeping by holders of licences under the said Act of 1933 of records as to hours of work, journeys, loads and other matters,

or that the use of an authorised vehicle has been prohibited under section seventeen of the said Act of 1933:

Provided that the licensing authority shall not revoke or suspend a licence or give a direction by virtue of this subsection unless he is satisfied, after holding a public inquiry if the holder of the licence requests him so to do, that owing to the frequency of such convictions or prohibitions, or the wilfulness of the act or omission leading to the conviction or prohibition, or the danger to the public involved in that act or omission, the licence should be suspended or revoked or, as the case may be, the direction given.

(2) The objections which under subsection (2) of section eleven of the said Act of 1933 the licensing authority has a duty (subject to the proviso to that subsection) to consider on an application for the grant or variation of a licence under that Act shall include objections on the ground that in relation to such a licence held by the applicant there has been any such conviction or prohibition as is mentioned in the last foregoing subsection.

(3) Subsection (1) of section eight of the said Act of 1933 (which makes licences under that Act subject to conditions relating to the matters mentioned in paragraphs (a) to (d) of subsection (1) of this section) shall cease to have effect; and accordingly subsection (2) of section nine of that Act (which excludes the operation of the conditions of a licence while an authorised vehicle is being used for a purpose for which no

licence is required) shall not affect the operation of any such statutory provision as is mentioned in subsection (1) of this section.

(4) So long as the provisions of section twelve of the Road and Rail Traffic Act, 1933 (which relates to holding and subsidiary companies) have effect, references in subsection (1) of this section to the holder of the licence or his servant or agent shall include references to the subsidiary company (within the meaning of the said section twelve) or any servant or agent of that company.

(5) In this section and in Part I of the said Act of 1933 the expression "authorised vehicle" means, in relation to a licence under that Act, a vehicle authorised to be used thereunder, whether or not it is for the time being in use for a purpose for which such a licence is required and whether it is specified therein as so authorised or, being of a type so authorised subject to a maximum number, is in the possession of the holder of the licence under an agreement for hire or loan or, if a trailer, belongs to him or is in his possession under an agreement for hire purchase, hire or loan.

44.—(1) There shall be included among the grounds on which an A licence or a B licence may be suspended or revoked under subsection (1) of section thirteen of the Road and Rail Traffic Act, 1933 (which provides for the revocation or suspension of carriers' licences in certain circumstances), or a direction may be given under subsection (3) of that section, the following additional ground, that is to say, that the holder of the licence has been persistently charging, for services which consist of or include the carriage of goods by road in any of the authorised vehicles, sums insufficient to meet the cost of rendering those services and has thereby placed other holders of licences at an undue or unfair disadvantage in competing with him as respects the carriage of goods by road.

Amendments
as to
suspension or
revocation of
A and B
licences.

(2) The proviso to the said subsection (1) (which proviso imposes certain conditions on the powers of the licensing authority to revoke or suspend a licence) shall not apply to any revocation, suspension or direction made or given by virtue of this section, but if the holder of the licence requests the licensing authority to hold a public inquiry, the licensing authority shall not make or give any such revocation, suspension or direction except after holding such an inquiry.

(3) So long as the provisions of section twelve of the Road and Rail Traffic Act, 1933 (which relates to holding and subsidiary companies), have effect, paragraphs (a) to (c) of subsection (1) of that section shall apply in relation to subsection (1) of this section as they apply in relation to Part I of that Act, and references in subsection (1) of this section to charges made by the holder of the licence and to competing with him shall be construed accordingly.

Provisions as to dual carriageways, roundabouts and street refuges.

45.—(1) The highway authority for any road repairable by the inhabitants at large shall have power to construct and maintain works in the carriageway—

- (a) along any length of road, for separating a part of the road which is to be used by traffic moving in one direction from a part of the road which is to be used (whether at all times or at particular times only) by traffic moving in the other ;
- (b) at cross roads or other road junctions, for regulating the movement of traffic ;
- (c) for providing places of refuge for the protection of foot passengers crossing the road.

(2) The powers conferred by the last foregoing subsection shall include power to light any such works as aforesaid, to pave, grass or otherwise cover them or any part of them, to erect pillars, walls, rails, or other fences on, around or across them or any part of them and to plant on them trees, shrubs and other vegetation either for ornament or in the interests of safety.

(3) The power conferred by the foregoing provisions of this section to construct any works shall include power to alter or remove them.

(4) As respects any road in a borough or urban district, being a road for which the council of the borough or district are not the highway authority, and as respects any road in a rural district, the powers of a highway authority under this section may be exercised with that authority's consent by the council of the borough or urban or rural district, as the case may be.

(5) The power of the Minister to make advances under section eight of the Development and Road Improvement Funds Act, 1909 (which relates, among other things, to grants for road improvements) shall include power to make advances to a highway authority, or to the council of a borough or urban district, in respect of any work, beyond ordinary repairs essential to placing a road in a proper state of repair, done in the exercise of the powers conferred by the foregoing provisions of this section ; and accordingly, in relation to any advances made by virtue of this subsection, the reference in subsection (4) of the said section eight to a highway authority shall be construed as including a reference to the council of a borough or urban district.

(6) Part II of the Public Utilities Street Works Act, 1950, and the Fourth Schedule to that Act (which provide a code regulating the relations between authorities carrying out alterations to roads and statutory undertakers having apparatus in those roads) shall have effect as if the works mentioned in paragraph (a) of subsection (1) of section twenty-one of that Act

included any such work as is mentioned in the last foregoing subsection executed (whether or not for road purposes as defined in that Act) by or on behalf of any authority mentioned in that paragraph or a rural district council.

(7) The following provisions:—

in the Public Health Acts Amendment Act, 1890, in section thirty-nine the words “or places of refuge” and the words from “or for the purpose” to the end of the section;

in the Burgh Police (Scotland) Act, 1903, in section fourteen the words “or may provide island platforms for pedestrians”;

in section fifty-five of the Act of 1930, the words from “erect” to “road and”;

in subsection (2) of section fifty-seven of the Act of 1930, the words “places of refuge in roads, and”,

shall cease to have effect; and anything done before the coming into operation of this section, otherwise than in pursuance of powers conferred by the said section thirty-nine, fourteen or fifty-five, which could lawfully have been done under powers conferred by this section if it had then been in force shall be treated as if this section had been in force when it was done.

(8) In the application of this section to Scotland, in subsection (1) for the words from “The highway authority” to “power”, there shall be substituted the words “The Secretary of State or any county or town council shall have power, in respect of any road for the maintenance and repair of which he or any such council are responsible”, and for subsection (5) there shall be substituted the following subsection:—

“(5) The power of the Secretary of State to make advances under section eight of the Development and Road Improvement Funds Act, 1909, shall include power to make advances to the council of a county or of a large burgh as defined in the Local Government (Scotland) Act, 1947, in respect of any work, beyond ordinary repairs essential to placing a road in a proper state of repair, done in the exercise of the powers conferred by the foregoing provisions of this section.”

46.—(1) The power conferred by subsection (3) of section Amendments
eighteen of the Act of 1934 (which relates to crossings for foot- as to
passengers) to make different regulations in different circum- pedestrian
stances shall include power to make regulations applying only to crossings.
a particular crossing or particular crossings specified in the
regulations.

(2) A scheme such as is mentioned in subsection (4) of the said section eighteen (which relates to proposals for the establishment of crossings) may, after such consultation and giving of notice as is mentioned in that subsection, be submitted to the Minister or, as the case may be, the Secretary of State at any time, notwithstanding that the period within which the submission thereof is required has elapsed and notwithstanding any earlier submission of a statement of reasons for considering the establishment of crossings to be unnecessary; and the provisions of the said section eighteen, other than the said subsection (4), shall apply to a scheme submitted under this subsection as they apply to a scheme submitted under that subsection.

This subsection shall be deemed always to have had effect.

(3) The power of the Minister or of the Secretary of State under the said section eighteen to make regulations with respect to the indication of the limits of a crossing by marks on the roadway or otherwise shall include, and be deemed always to have included, power to make regulations with respect to the indication, by marks or devices on or near the roadway or otherwise, of any matter relating to the crossing:

Provided that this subsection shall not affect any proceedings pending at the coming into operation of this section.

(4) For subsection (8) of the said section eighteen there shall be substituted the following subsection:—

“(8) Any person who contravenes any regulations made under this section shall be guilty of an offence and liable to a fine not exceeding ten pounds or, in the case of a second or subsequent offence, to a fine not exceeding twenty-five pounds.”

Appeals
relating to
road service
licences.

47.—(1) Where the holder of a road service licence makes application to the commissioners to exercise their powers under subsection (4) of section seventy-two of the Act of 1930 to vary the conditions attached to the licence, it shall be the duty of the commissioners to consider whether they shall exercise the said powers.

(2) Where the commissioners entertain an application for them to exercise their said powers or give such notice as may be prescribed under section seventy-nine of the Act of 1930 of a proposal that they should exercise those powers, but refuse to vary the conditions attached to the licence, the holder of the licence or, if they have made representations in favour of the exercise of those powers, any of the following persons, that is to say—

(a) the council of any county, county borough or county district in England or Wales, or any county or town

council in Scotland, in whose area the route to which the licence relates or any part of that route is situated, or

(b) any person providing transport facilities along or near that route or any part thereof,

may within the time and in the manner prescribed under section eighty-one of the Act of 1930 appeal to the Minister; and on any such appeal the Minister shall have power to make such order, binding upon the commissioners, as he thinks fit.

48.—(1) Subject to the provisions of this section, a driving licence granted after the coming into operation of this section shall, unless previously revoked or surrendered, remain in force for a period of three years from the date on which it is granted, and the fee payable on the grant thereof shall be fifteen shillings. Duration of driving licences and fees therefor.

(2) Where a driving licence is granted on the surrender of another licence, and the licence surrendered was capable of remaining in force for three years, then if the applicant so requires the fee payable on the grant shall be five shillings and the licence shall not remain in force after the end of the period for which the licence surrendered could have remained in force.

(3) In paragraph (i) of subsection (1) of section thirty of the Act of 1930 (which provides for the issue of driving licences, in the place of licences lost or defaced, on payment of a fee not exceeding one shilling) for the words "one shilling" there shall be substituted the words "two shillings and sixpence".

(4) Subsection (1) of this section shall not apply to a provisional licence or to a licence granted to a person as resident outside the United Kingdom.

(5) For the purpose of securing, as far as may be, that when this section has come into full operation the work of issuing driving licences will be evenly spread, the Minister may by regulations under section thirty of the Act of 1930 provide for dividing into three groups applications made by persons who have not previously held a driving licence capable of remaining in force for three years, but have previously held either a driving licence, other than a provisional licence, or a licence under the Motor Car Act, 1903; and there shall be excepted from the operation of subsection (1) of this section applications of the first of those groups made in the first or second year after the coming into operation of this section, and applications of the second of those groups made in the first year after the coming into operation thereof:

Provided that the validity or duration of a driving licence shall not be affected by reason that under the foregoing provisions of

this section the licence ought to have been granted so as to remain in force for a period other than that for which the licence was in fact granted.

(6) In this section the expression "driving licence" means a licence to drive a motor vehicle granted under Part I of the Act of 1930.

Constitution
of London
and Home
Counties
Traffic
Advisory
Committee.

49. In the Twelfth Schedule to the London Passenger Transport Act, 1933 (which sets out the constitution of the London and Home Counties Traffic Advisory Committee) for the provision for one member to be appointed by the Minister to represent the interests of certain persons providing or using mechanically propelled road vehicles there shall be substituted the following provisions:—

"Two—By the Minister, after consultation with such bodies representative of those interests as he may think fit, to represent the interests of persons (other than such persons as are hereinafter mentioned and other than the British Transport Commission and any Executive) providing or using mechanically propelled road vehicles within the London Traffic Area.

One—By the Minister, after consultation with such bodies representative of those interests as he may think fit, to represent the interests of persons (other than the British Transport Commission and any Executive) who are holders of public carriers' licences and limited carriers' licences under the Road and Rail Traffic Act, 1933, carrying on business within the London Traffic Area.

One—By the Minister, after consultation with such bodies representative of those interests as he may think fit, to represent the interests of persons who are holders of private carriers' licences under the Road and Rail Traffic Act, 1933, carrying on business within the London Traffic Area.

One—By the Minister, after consultation with such bodies representative of those interests as he may think fit, to represent the interests of persons (other than the British Transport Commission and any Executive) who are the holders of licences authorising them to operate public service vehicles within the London Traffic Area.

One—By the Minister, after consultation with such bodies representative of those interests as he may think fit, to represent the interests of persons using bicycles and tricycles, not being motor vehicles, within the London Traffic Area."

50.—(1) A mechanically propelled vehicle to which this section applies—

Exemption of
pedestrian-
controlled
grass cutters.

(a) shall for the purposes of the Road Traffic Acts, 1930 to 1956 be treated as not being a motor vehicle ;

(b) shall for the purposes of the Road Transport Lighting Acts, 1927 to 1953 be treated as a vehicle propelled by hand.

(2) This section applies—

(a) to any implement for cutting grass which is controlled by a pedestrian and is not capable of being used or adapted for any other purpose ;

(b) to such other vehicles controlled by pedestrians as may be specified for the purposes of this section by regulations made by the Minister by statutory instrument.

(3) In the last foregoing subsection “controlled by a pedestrian” means that the implement or vehicle either—

(a) is constructed or adapted for use only under such control, or

(b) is constructed or adapted for use either under such control or under the control of a person carried on it but is not for the time being in use under, or proceeding under, the control of a person carried on it.

(4) Regulations under this section shall not have effect unless approved by resolution of each House of Parliament.

51. The enactments specified in the Eighth Schedule to this Act shall have effect subject to the amendments specified in that Schedule, being minor amendments or amendments consequential on the foregoing provisions of this Act.

Minor and
consequential
amendments.

52.—(1) The expenses of the Minister or of the Secretary of State under this Act shall be defrayed out of moneys provided by Parliament.

Financial
provisions.

(2) There shall be paid into the Exchequer any receipts of the Minister under this Act and any increase attributable to this Act in the sums payable into the Exchequer under any enactment.

(3) Any sum paid to the Secretary of State in pursuance of section twenty-seven of the Justices of the Peace Act, 1949, in respect of a fine recovered under this Act or regulations made thereunder shall be deemed to be Exchequer moneys within the meaning of that section and shall be paid by the Secretary of State into the Exchequer.

(4) Any increase attributable to this Act in the sums payable out of moneys provided by Parliament under Part I of the

Local Government Act, 1948, or under the Local Government (Financial Provisions) (Scotland) Act, 1954, shall be defrayed out of moneys so provided.

**Application
to Crown.**

53.—(1) Subsection (2) of section one hundred and twenty-one of the Act of 1930 (which provides for the application of Parts I and III of that Act to vehicles and persons in the public service of the Crown) shall apply in relation to this Act.

(2) In the application of the said subsection (2) in relation to section eleven of this Act, references to the driver of a vehicle shall include references to the person riding a bicycle or tricycle.

(3) Subsection (1) of section forty of the Act of 1930, in so far as it provides for the production of test certificates and the giving of names and addresses, shall apply to a person in connection with any vehicle to which section two of this Act applies notwithstanding that he or the vehicle is or was at any material time in the public service of the Crown.

Interpretation.

54.—(1) In this Act the following expressions have the meanings hereby assigned to them respectively, that is to say:—

“ Act of 1930 ” means the Road Traffic Act, 1930 ;

“ Act of 1934 ” means the Road Traffic Act, 1934 ;

“ bridleway ” means a way over which the public have the following, but no other rights of way, that is to say a right of way on foot and a right of way on horseback or leading a horse, with or without a right to drive animals of any description along the way ;

“ chief officer of police ” has the same meaning as in the Act of 1930 ;

“ footpath ” means a way over which the public have a right of way on foot only ;

“ the Minister ” means the Minister of Transport and Civil Aviation ;

“ motor cycle ” has the same meaning as in the Act of 1930, and paragraph (c) of subsection (4) of section two of that Act (which relates to side cars) shall apply for the purposes of this Act as it applies for the purposes of Part I of that Act ;

“ motor vehicle ” has the same meaning as in the Act of 1930 ;

“ public service vehicle ”, “ stage carriage ” and “ express carriage ” have respectively the meanings assigned to them by section thirty-nine of this Act ;

“ road ” means any highway and any other road to which the public has access ;

“statutory”, in relation to any prohibition, restriction, requirement or provision, means contained in, or having effect under, any enactment;

“test certificate” has the meaning assigned to it by subsection (2) of section one of this Act;

“tramcar” includes any carriage used on any road by virtue of an order made under the Light Railways Act, 1896;

“trolley vehicle” means a mechanically-propelled vehicle adapted for use upon roads without rails and moved by power transmitted thereto from some external source.

(2) Any power conferred by the foregoing provisions of this Act to make an order shall include power, exercisable in like manner and subject to the like provisions, to vary or revoke an order.

(3) References in this Act to any enactment shall be construed, except where the context otherwise requires, as references to that enactment as amended by or under any subsequent enactment, including this Act.

55.—(1) This Act may be cited as the Road Traffic Act, 1956, and this Act and the Road Traffic Acts, 1930 to 1947 may be cited together as the Road Traffic Acts, 1930 to 1956. Short title,
commence-
ment, repeals,
savings
and extent.

(2) This Act shall come into operation on such day as the Minister may by order made by statutory instrument appoint; and different days may be appointed for different provisions of this Act.

(3) The enactments specified in the Ninth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(4) The repeal of section one hundred and four of the Roads and Bridges (Scotland) Act, 1878 (which empowers a local authority to make byelaws in respect of highways within their jurisdiction), or of paragraphs (1) and (3) of section three hundred and eighty-five of the Burgh Police (Scotland) Act, 1892 (which among other things permits a town council to regulate traffic in a burgh) shall not affect any byelaw made under any of those enactments, but any such byelaw shall have effect as if it were an order made under section forty-six of the Act of 1930.

(5) This Act shall not extend to Northern Ireland.

SCHEDULES

Section 3.

FIRST SCHEDULE

DEFERRED TESTS OF CONDITION OF VEHICLES

1. Where the driver is the owner of the vehicle, he may at the time of electing that the test shall be deferred specify a period of seven days within which the deferred test is to take place, being a period falling within the next thirty days, disregarding any day on which the vehicle is outside Great Britain, and may at that time require that the deferred test shall take place on premises then specified by him where the test can conveniently be carried out or that it shall take place in such area in England or Wales, being a county borough or county district or the administrative county of London, or such area in Scotland, being a county or burgh, as he may specify at the said time.
2. Where the driver is not the owner of the vehicle, he shall inform the examiner of the name and address of the owner of the vehicle and the owner shall be afforded an opportunity of specifying such a period, and such premises or area, as aforesaid.
- 3.—(1) Where under the foregoing provisions of this Schedule a period has been specified within which the deferred test is to be carried out, the time for carrying it out shall be such time within that period as may be notified, being a time not earlier than two days after the giving of the notification.
(2) Where no such period has been specified as aforesaid, the time for the carrying out of the deferred test shall be such time as may be notified, being a time not earlier than seven days after the giving of the notification.
(3) Where premises have been specified under the foregoing provisions of this Schedule for the carrying out of the deferred test, and the test can conveniently be carried out on those premises, it shall be carried out there.
(4) Where the last foregoing sub-paragraph does not apply, the place for carrying out the deferred test shall be such place as may be notified with the notification of the time for the carrying out of the test, and where an area has been specified as aforesaid the place shall be a place in that area.
(5) Notwithstanding the foregoing provisions of this paragraph, the time and place for the carrying out of the deferred test may be varied by agreement between an authorised examiner and the owner of the vehicle.
(6) In this paragraph the expression "notified" means notified in writing to the owner of the vehicle on behalf of the Minister, and the expression "notification" shall be construed accordingly; and any notification under this paragraph may be given by post.
4. It shall be the duty of the owner of the vehicle to produce it, or secure its production, at the time and place fixed for the carrying out of the deferred test.

5. References in this Schedule to the owner of a vehicle are references to the owner thereof at the time at which the election is made under subsection (3) of section three of this Act that the test should be deferred, and for the purposes of this Schedule—

1ST SCH.
—cont.

(a) if at that time the vehicle is in the possession of a person under a hire-purchase agreement or hiring agreement and the case is not one falling within the next following sub-paragraph, that person,

(b) if at that time the vehicle is being used under an international circulation permit, the person to whom the permit was issued,

shall be deemed to be the owner of the vehicle to the exclusion of any other person.

SECOND SCHEDULE

Section 5.

TRAVELLING &C. ALLOWANCES FOR ATTENDANCE AT ROAD SAFETY CONFERENCES

1.—(1) Where arrangements made by a local authority under subsection (2) of section five of this Act include the setting up of a road safety committee, then if the committee is designated for the purposes of this Schedule by or under regulations made under section one hundred and seventeen of the Local Government Act, 1948 (which provides for the making of regulations for administering the provisions of Part VI of that Act as to the payment of allowances) the following provisions shall have effect.

(2) Attendance as a representative of the road safety committee, or of any local or other authority, at any conference or meeting relating to road safety and designated by or under such regulations as aforesaid shall, subject to any conditions or restrictions prescribed by such regulations, be an approved duty for the purposes of the said Part VI.

(3) A member of the road safety committee who is not, and apart from this paragraph is not for the purposes of the said Part VI to be deemed to be, a member of a local or other authority shall, in relation to any such attendance as is mentioned in the last foregoing sub-paragraph, be treated for the said purposes as a member of such local or other authority concerned with the setting up of the committee as may agree so to treat him or as the Minister or, as the case may be, the Secretary of State, may determine.

2. Expenditure incurred by any local or other authority in the payment of travelling allowances or subsistence allowances in respect of attendances which are approved duties by virtue of sub-paragraph (2) of the last foregoing paragraph shall be treated for the purposes of subsection (2) of section five of this Act as part of the cost of the arrangements under which the road safety committee was set up; and subsection (4) of section one hundred and fourteen of the Local Government Act, 1948 (which excludes grant out of moneys provided by Parliament, other than Exchequer Equalisation Grant, in respect of expenditure under Part VI of that Act) shall not prevent the Minister or, as the case may be, the Secretary of State making contributions under subsection (2) of section five of this Act in respect of such expenditure.

2ND SCH.
—cont.

3. In this Schedule the expression "local or other authority" means a body to which Part VI of the Local Government Act, 1948 applies, and the expression "road safety committee" means a committee or other body set up to act for the purposes of section five of this Act.

Section 19.

THIRD SCHEDULE

PROCEDURE FOR ORDERS DESIGNATING PARKING PLACES

PART I

Orders made on Local Authority Application

1. Before applying for an order under section nineteen of this Act a local authority shall consult with the chief officer of police.

2.—(1) On applying for such an order a local authority shall publish in the London Gazette and in at least one newspaper circulating in the locality an advertisement—

(a) stating the general effect of the proposed order, the whereabouts of the parking places to be designated thereby, the classes or descriptions of vehicles for which they are to be designated, the charges to be made for use of the parking places, and the provisions of the proposed order as to the times when the parking places may be used ;

(b) specifying a place or places where a copy of the proposed order, and a plan showing the precise location of the parking places to be designated, may be inspected at reasonable times specified in the advertisement during a period so specified of not less than twenty-eight days from the publication or first publication of the advertisement ;

(c) stating that any person wishing to object to the making of the order may do so by sending to the Minister, within the said period, notice in writing of his objection stating the grounds thereof.

(2) On applying for such an order a local authority shall take such other steps as appear to the authority reasonably practicable for the purpose of bringing specifically to the knowledge of persons likely to be specially affected, as the occupiers of land adjacent to the parking places, information as to the matters specified in heads (a) to (c) of the last foregoing sub-paragraph.

(3) Where on the expiration of the period specified in the advertisement under sub-paragraph (1) of this paragraph it appears to the Minister that, before the application is further dealt with, the local authority should take further steps for the purpose mentioned in the last foregoing sub-paragraph, he may direct the authority to take such further steps for that purpose as he may specify, and if he does so the period within which a copy of the order and plan may be inspected, and objections may be made, shall be deemed to be extended by such time as the Minister may direct.

3. On such an application as aforesaid the Minister shall, after the period for objecting to the making of the order has expired, refer the application, together with any objection duly made, to the London and Home Counties Traffic Advisory Committee (hereinafter

referred to as "the Advisory Committee"), and the Advisory Committee shall consider the application and any objections duly made thereto and report to and advise the Minister thereon; and the Minister shall consider their report and advice.

3RD SCH.
—cont.

4. After compliance with the provisions of the last foregoing paragraph the Minister may make an order, either as applied for or with such modifications as he thinks fit:

Provided that where the local authority applying for the order is not the highway authority he shall not make the order except with the consent of the highway authority.

5.—(1) In relation to an application made, by virtue of an order under subsection (7) or (8) of section nineteen of this Act, for an order under that section designating a parking place outside the London Traffic Area, the foregoing provisions of this Schedule shall have effect subject to the following modifications.

(2) Paragraph 3 shall not apply, and—

(a) the Minister shall, after the period for objecting to the making of the order has expired, consider an application and any objections duly made thereto and may hold a public inquiry;

(b) paragraph 4 shall apply with the substitution of a reference to head (a) of this sub-paragraph for the reference to the said paragraph 3.

(3) In relation to an application relating to a parking place in Scotland paragraph 2 shall have effect with the substitution for the reference to the London Gazette of a reference to the Edinburgh Gazette.

PART II

Orders made without Local Authority Application

6. Before making an order by virtue of subsection (5) of section nineteen of this Act the Minister shall publish in the London Gazette and in at least one newspaper circulating in the locality an advertisement stating and specifying the matters set out in heads (a) to (c) of sub-paragraph (1) of paragraph 2 of this Schedule, and shall take such other steps as appear to the Minister reasonably practicable for the purpose of bringing specifically to the knowledge of persons likely to be specially affected, as the occupiers of land adjacent to the parking places, information as to those matters.

7. Where the Minister has in pursuance of the last foregoing paragraph advertised a proposal to make an order, then after the period for objecting to the making of the order has expired the Minister shall refer the proposal, together with any objection duly made, to the Advisory Committee, and that Committee shall consider the proposal and any objections duly made thereto and report and advise the Minister thereon and the Minister shall consider their report and advice.

8. After compliance with the provisions of the last foregoing paragraph the Minister may make an order, either as proposed or with such modifications as he thinks fit.

3RD SCH.
—cont.

PART III

Provisions as to inquiries

9. For the purposes of paragraph 3 or 7 of this Schedule the Minister may require the Advisory Committee to cause an inquiry to be held under section three of the London Traffic Act, 1924, or if the Advisory Committee do not hold an inquiry may himself do so; and section forty-seven of the Road and Rail Traffic Act, 1933 shall apply in relation to inquiries held by the Minister for the purposes of this Schedule as it applies to inquiries held for the purposes of that Act.

Section 26.

FOURTH SCHEDULE

OFFENCES IN RESPECT OF WHICH DISQUALIFICATION OR
ENDORSEMENT MAY BE ORDERED

1. Any offence against subsection (1) of section four of the Act of 1930 or section thirty-one of the Act of 1934 (driving, or employing a person to drive, without a licence) or under subsection (3) of section five of the Act of 1930 (failure to comply with the conditions of a provisional licence).
2. Any offence under subsection (4) of section seven of the Act of 1930 (applying for or obtaining a licence, or driving, while disqualified).
3. Any offence against section nine of the Act of 1930 (restriction of driving by young persons).
4. Any offence committed in respect of a motor vehicle against any statutory restriction of speed on a road, including any offence under section thirteen of the Act of 1930.
5. Manslaughter by the driver of a motor vehicle, any offence under section thirty-five of the Offences against the Person Act, 1861 (causing bodily harm) committed by the person having charge of a motor vehicle, or any offence under section eight of this Act, or any offence under section eleven or twelve of the Act of 1930 (reckless, dangerous, careless or inconsiderate driving) committed in respect of a motor vehicle.
6. Any offence under section nine of this Act, or any offence under section fifteen of the Act of 1930 (driving or attempting to drive when under the influence of drink or a drug) committed in respect of a motor vehicle.
7. Any offence under section sixteen of the Act of 1930 (unlawful pillion riding) committed by the driver of a motor vehicle.
8. Any offence under section twenty-eight of the Act of 1930 (taking away motor vehicle without owner's consent or other authority).
9. Any offence under subsection (1) of section two of this Act.

10. An offence under any statutory provision, committed in respect of a motor vehicle, being an offence—

4TH SCH.
—cont.

- (a) of failure to conform to the indication given by a traffic sign or to comply with a direction given by a police constable, or
- (b) of failure to comply with a requirement to proceed or not to proceed in a specified direction or along a specified part of the carriageway, or
- (c) of using a vehicle on a road, or causing or permitting a vehicle to be so used, so as, by the condition of the vehicle or its parts or accessories, the number of passengers carried by it, or the weight, distribution, packing or adjustment of its load, to cause, or to be likely to cause, danger, and in particular (but without prejudice to the generality of this paragraph) of contravening any requirement as to brakes, steering gear or tyres or any other requirement prescribed under subsection (1) of section one of this Act,

and any offence in respect of a motor vehicle under section fifty of the Act of 1930 (leaving a vehicle in a dangerous position on a road), subsection (8) of section eighteen of the Act of 1934 (pedestrian crossings), subsection (5) of section one of the Street Playgrounds Act, 1938, or subsection (2) of section two of the School Crossing Patrols Act, 1953.

11. Any offence under section thirty-five of the Act of 1930 (compulsory third-party insurance).

12. Any offence in respect of a motor vehicle under the Road Transport Lighting Acts, 1927 to 1953.

FIFTH SCHEDULE

Section 36.

EXPERIMENTAL TRAFFIC SCHEMES IN LONDON

- 1. Prescribing the routes to be followed by traffic from one specified point to another.
- 2. Prescribing streets which are not to be used for traffic.
- 3. Regulating the relative position in the roadway of traffic of differing speeds or types.
- 4. Prescribing the places where vehicles may not turn so as to face in the opposite direction to that in which they were proceeding, or where they may only so turn under prescribed conditions.
- 5. Prescribing the conditions subject to which and the times at which articles may be loaded on to or unloaded from vehicles on streets.
- 6. Prescribing the conditions subject to which and the times at which vehicles delivering or collecting goods or merchandise, or goods or merchandise of any particular class or classes, may stand in streets.
- 7. Prescribing rules as to precedence to be observed as between vehicles proceeding in the same direction, in opposite directions or when crossing.

5TH SCH.
—cont.

8. Making provision as to vehicles when unattended.
9. Making provision as to places in streets where vehicles may, or may not, wait.
10. Making provision as to cab ranks and ranks and stopping places of omnibuses and other public conveyances.

Section 40.

SIXTH SCHEDULE

CONDITIONS AFFECTING CLASSIFICATION OF VEHICLES

PART I

Race meetings, public gatherings etc.

1. The journey on which the passengers are being carried must be made on the occasion of a race meeting, public gathering or other like special occasion.

PART II

Conditions relating to certain journeys for vehicles carrying four passengers or less.

2. The number of passengers carried must not exceed four.
3. The making of the agreement for the payment of separate fares must not have been initiated by the driver or by the owner of the vehicle, by the person who has let the vehicle for hire by any hiring agreement or hire-purchase agreement, or by any person who receives any remuneration in respect of the arrangements for the journey:
Provided that the agreement may have been initiated by the driver or owner, if the passengers are not being carried in the course of a business of carrying passengers.
4. The journey must be made without previous advertisement to the public of facilities for its being made by passengers to be carried at separate fares.
5. The journey must not be one on which passengers are carried at separate fares frequently, or as a matter of routine, in the same vehicle or in vehicles (other than vehicles used under a road service licence) belonging to the same owner or belonging partly to one person and partly to another who is a party to a hiring agreement or hire-purchase agreement of which any of the vehicles is the subject.

6. The journey must not be made in conjunction with, or in extension of, a service provided under a road service licence if the vehicle is owned by, or made available under any arrangement (including a hiring agreement or hire-purchase agreement) with, the holder of the licence or any person who receives any remuneration in respect of the service provided thereunder or in respect of arrangements for that service.

PART III

Parties of overseas visitors

7. Each of the passengers making the journey must have been outside Great Britain at the time of concluding his arrangements to make the journey.

PART IV

6TH SCH.
—cont.*Alternative conditions affecting classification*

8. Arrangements for the bringing together of all the passengers for the purpose of making the journey must have been made otherwise than by, or by a person acting on behalf of,—

- (a) the holder of the public service vehicle licence in respect of the vehicle, if such a licence is in force,
- (b) the driver or the owner of the vehicle or the person who has let the vehicle for hire by any hiring agreement or hire-purchase agreement, if no such licence is in force,

and otherwise than by any person who receives any remuneration in respect of the arrangements.

9. The journey must be made without previous advertisement to the public of the arrangements therefor.

10. All the passengers must, in the case of a journey to a particular destination, be carried to, or to the vicinity of, that destination, or, in the case of a tour, be carried for the greater part of the journey.

11. No differentiation of fares for the journey on the basis of distance or of time must be made.

12. In the case of a journey to a particular destination the passengers must not include any person who frequently, or as a matter of routine, travels, at or about the time of day at which the journey is made, to or to the vicinity of that destination from a place from or through which the journey is made.

PART V

Supplementary

13. For the purposes of paragraphs 4 and 9 of this Schedule no account shall be taken of any such advertisement as follows, that is to say—

- (a) a notice displayed or announcement made at or in any place of worship in the manner in which notices or announcements for the information of persons attending that place of worship are normally displayed or made, or
- (b) a notice displayed in any periodical published for the information of persons who attend a particular place of worship or a place of worship in a particular place, and circulating wholly or mainly among persons who attend or might reasonably be expected to attend there.

14.—(1) A vehicle adapted to carry eight or more passengers shall not be treated as having been used in circumstances in which the conditions set out in Part III or Part IV of this Schedule were fulfilled unless, within such time as the Minister may by regulations under the Act of 1930 prescribe, the holder of the public service vehicle licence in respect of the vehicle makes, or causes to be made, a record in such form as may be so prescribed containing such particulars, other than particulars of fares or prices, relating to the journey and the circumstances in which it was arranged as may be so prescribed.

6TH SCH.
—cont.

(2) A vehicle adapted to carry eight or more passengers shall not be treated as being used as aforesaid unless the driver of the vehicle carries a work ticket in such form as may be prescribed by the Minister by regulations under the Act of 1930 and containing such particulars as may be so prescribed, being particulars appearing to the Minister requisite for enabling records made under the last foregoing sub-paragraph to be traced and identified.

(3) The driver of a vehicle shall, on demand by a police constable in uniform or by a person authorised by any traffic commissioners, on production if so required of that person's authority, produce a work ticket carried by him under this paragraph for inspection by the constable or person authorised; and if the driver fails so to do he shall be liable on summary conviction to a fine not exceeding twenty pounds or, in the case of a second or subsequent conviction, to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months.

(4) The holder of a public service vehicle licence who has made or caused to be made such a record as aforesaid shall preserve it for a period of six months from the date on which it is made and shall, if required so to do at any time during that period, produce it for inspection by any person authorised by any traffic commissioners, on production if so required of that person's authority, and if he fails so to preserve or produce it he shall be liable on summary conviction to such punishment as is specified in the last foregoing sub-paragraph.

(5) If, with intent to deceive, any person alters an entry in a record made under this paragraph he shall be liable—

(a) on conviction on indictment to imprisonment for a term not exceeding two years;

(b) on summary conviction to imprisonment for a term not exceeding four months or to a fine not exceeding one hundred pounds or to both such imprisonment and such fine.

(6) Any regulations made for the purposes of section twenty-five of the Act of 1934 and in force at the commencement of this Act shall continue in force as if made by virtue of this paragraph.

15. In this Schedule the expression "owner", in relation to a vehicle which is the subject of a hiring agreement or hire-purchase agreement, means the person in possession of the vehicle under that agreement.

Section 42.

SEVENTH SCHEDULE

SUPPLEMENTARY PROVISIONS IN CONNECTION WITH PROCEEDINGS FOR OFFENCES UNDER SECTION FORTY-TWO

1.—(1) A person against whom proceedings are brought in England or Wales for an offence under section forty-two of this Act (hereinafter referred to as "the principal section") shall, upon information duly laid by him and on giving to the prosecution not less than three clear days' notice of his intention, be entitled to have

any person to whose act or default he alleges that the contravention of that section was due brought before the court in the proceedings ; and if, after the contravention has been proved, the original accused proves that the contravention was due to the act or default of that other person, that other person may be convicted of the offence, and, if the original accused further proves that he has used all due diligence to secure that that section was complied with, he shall be acquitted of the offence.

7TH SCH.
—cont.

(2) Where an accused seeks to avail himself of the provisions of the last foregoing sub-paragraph—

- (a) the prosecution, as well as the person whom the accused charges with the offence, shall have the right to cross-examine him, if he gives evidence, and any witness called by him in support of his pleas, and to call rebutting evidence ;
- (b) the court may make such order as it thinks fit for the payment of costs by any party to the proceedings to any other party thereto.

(3) Where it appears that an offence under the principal section has been committed in respect of which proceedings might be taken in England or Wales against some person (hereinafter referred to as “the original offender”), and a person proposing to take proceedings in respect of the offence is reasonably satisfied that the offence of which complaint is made was due to an act or default of some other person, being an act or default which took place in England or Wales, and that the original offender could establish a defence under sub-paragraph (1) of this paragraph, the proceedings may be taken against that other person without proceedings first being taken against the original offender.

In any such proceedings the accused may be charged with, and on proof that the contravention was due to his act or default be convicted of, the offence with which the original offender might have been charged.

2.—(1) Where proceedings are brought in England or Wales against any person (hereafter in this paragraph referred to as “the accused”) in respect of a contravention of the principal section, and it is proved—

- (a) that the contravention was due to the act or default of some other person, being an act or default which took place in Scotland, and
- (b) that the accused used all due diligence to secure compliance with that section,

the accused shall, subject to the provisions of this paragraph, be acquitted of the offence.

(2) The accused shall not be entitled to be acquitted under this paragraph unless within seven days from the date of the service of the summons on him he has given notice in writing to the prosecution of his intention to rely upon the provisions of this paragraph,

7TH SCH.
—cont.

specifying the name and address of the person to whose act or default he alleges that the contravention was due, and has sent a like notice to that person.

(3) The person specified in a notice served under this paragraph shall be entitled to appear at the hearing and to give evidence, and the court may, if it thinks fit, adjourn the hearing to enable him to do so.

(4) Where it is proved that the contravention of the principal section was due to the act or default of some person other than the accused, being an act or default which took place in Scotland, the court shall (whether or not the accused is acquitted) cause notice of the proceedings to be sent to the Minister.

3.—(1) Where a contravention of the principal section committed by any person in Scotland was due to an act or default of any other person, being an act or default which took place in Scotland, then, whether proceedings are or are not taken against the first-mentioned person, that other person may be charged with and convicted of the contravention and shall be liable on conviction to the same punishment as might have been inflicted on the first-mentioned person if he had been convicted of the contravention.

(2) Where a person who is charged in Scotland with a contravention of the principal section proves to the satisfaction of the court that he has used all due diligence to secure that the provision in question was complied with and that the contravention was due to the act or default of some other person, the first-mentioned person shall be acquitted of the contravention.

4.—(1) Subject to the provisions of this paragraph, in any proceedings (whether in England or Wales or Scotland) for an offence under the principal section it shall be a defence for the accused to prove—

- (a) that he purchased the helmet in question as being of a type which under the principal section could be lawfully sold or offered for sale, and with a written warranty to that effect, and
- (b) that he had no reason to believe at the time of the commission of the alleged offence that it was not of such a type, and
- (c) that it was then in the same state as when he purchased it.

(2) A warranty shall only be a defence in any such proceedings if—

(a) the accused—

(i) has, not later than three clear days before the date of the hearing, sent to the prosecutor a copy of the warranty with a notice stating that he intends to rely on it and specifying the name and address of the person from whom he received it, and

(ii) has also sent a like notice of his intention to that person, and

(b) in the case of a warranty given by a person resident outside the United Kingdom, the accused proves that he had taken

reasonable steps to ascertain, and did in fact believe in, the accuracy of the statement contained therein.

7TH SCH.
—cont.

(3) Where the accused is a servant of the person who purchased the helmet in question under a warranty, he shall be entitled to rely on the provisions of this section in the same way as his employer would have been entitled to do if he had been the accused.

(4) The person by whom the warranty is alleged to have been given shall be entitled to appear at the hearing and to give evidence, and the court may, if it thinks fit, adjourn the hearing to enable him to do so.

5.—(1) An accused who in any proceedings for an offence under the principal section wilfully applies to any helmet a warranty not given in relation to that helmet shall be guilty of an offence.

(2) A person who, in respect of any helmet sold by him, being a helmet in respect of which a warranty might be pleaded under the last foregoing paragraph, gives to the purchaser a false warranty in writing, shall be guilty of an offence, unless he proves that when he gave the warranty he had reason to believe that the statements or description contained therein were accurate.

(3) Any person guilty of an offence under this paragraph shall be liable on summary conviction to the like penalties as under the principal section.

(4) Where the accused in a prosecution for an offence under the principal section relies successfully on a warranty given to him or to his employer, any proceedings under sub-paragraph (2) of this paragraph in respect of the warranty may, at the option of the prosecutor, be taken either before a court having jurisdiction in the place where the helmet, or any of the helmets, to which the warranty relates was procured, or before a court having jurisdiction in the place where the warranty was given.

EIGHTH SCHEDULE

Section 51.

MINOR AND CONSEQUENTIAL AMENDMENTS

1. The following enactments, that is to say—

- (a) section six of the Locomotive Act, 1861 (which restricts the use of locomotives over suspension and other bridges),
- (b) section seven of that Act (which relates to the making good of damage to bridges caused by locomotives or their trailers), and
- (c) section seven of the Locomotives Act, 1898 (which enables owners of locomotives to appeal against restrictions on passing over bridges), and section eight of that Act (which prohibits locomotives being driven so as to pass one another on bridges),

shall cease to have effect.

2.—(1) Section one hundred and four of the Roads and Bridges (Scotland) Act, 1878 (which enables local authorities to make bye-laws for the regulation of traffic on highways) shall cease to have effect.

8TH SCH.
—cont.

(2) Schedule (C) to that Act shall have effect, in relation to a vehicle to which section three of the Act of 1930 applies, as if in section XCVI (which provides penalties for persons committing various nuisances on highways) the words "or more than one foot laterally beyond the wheel of such carriage", and section CVIII, were omitted.

3. In the Burgh Police (Scotland) Act, 1892, paragraph (50) of section three hundred and eighty-one (which provides for the labelling of carriages and carts) shall cease to have effect in relation to vehicles to which section three of the Act of 1930 applies, and paragraphs (1) and (3) of section three hundred and eighty-five shall cease to have effect.

4.—(1) In subsection (1) of section ten of the London Traffic Act, 1924 (which, as amended by section sixty-three of the London Passenger Transport Act, 1933, enables the Minister to make regulations with respect to road traffic in the London Traffic Area) after the word "load", in the second place where it occurs, there shall be inserted the words "the number of passengers the vehicle is adapted to carry".

(2) In paragraph (2) of the Third Schedule to the said Act of 1924 (which specifies the matters with respect to which regulations may be made under the said section ten) after the word "traffic" there shall be inserted the words "by vehicles, or".

(3) For the purposes of the said section ten and the said Third Schedule the expression "road" means any highway and any other road to which the public has access.

5. In subsection (1) of section twenty-three of the Public Health Act, 1925 (which confers powers on local authorities with respect to the lopping of trees, hedges and shrubs overhanging streets or footpaths) references to trees, hedges, and shrubs shall include references to vegetation of any description, and for the words "street or footpath" there shall be substituted the words "highway or any other road or footpath to which the public has access".

6.—(1) Regulations under the Road Transport Lighting Acts, 1927 to 1953, granting exemptions from any of the requirements of those Acts—

- (a) may grant exemptions therefrom in such cases as may be specified in the regulations and subject to such conditions as may be specified in or under the regulations; and
- (b) may make different provision as respects different areas, as respects different classes or descriptions of vehicles or as respects the same class or description of vehicles in different circumstances.

(2) For paragraph (b) of subsection (2) of section one of the Road Transport Lighting Act, 1927 (which subsection provides for exempting vehicles from the requirements of that Act) there shall be substituted the following paragraph:—

- "(b) vehicles standing or parked on any road with respect to which a speed limit on the driving of mechanically propelled vehicles is in force by virtue of any enactment, or on any road verge or in any parking place or any stand for hackney carriages."

(3) In relation to a road with respect to which an exemption under the said paragraph (b) has effect (whether absolutely or subject to conditions) the power conferred by subsection (1) of section forty-eight of the Act of 1930 of placing traffic signs indicating the existence of the exemption shall, if the local authority for the area in which the road is situated is not the highway authority for the road, be exercisable by the local authority with the consent of the highway authority, and the power conferred by subsection (5) of that section of giving to the highway authority directions for the removal of a traffic sign or other object or device or for the replacement of a traffic sign by, or its conversion into, a sign of another type or character shall include power to give such directions to the local authority in relation to a traffic sign, object or device placed by them on or near any such road.

In this sub-paragraph "local authority" means, as respects England and Wales, the council of a county borough, county district, metropolitan borough or the Common Council of the City of London, and as respects Scotland a county council or town council.

(4) Any provision contained in regulations under the Road Transport Lighting Acts, 1927 to 1953, which grant exemptions from any of the requirements of those Acts and are in force at the coming into operation of this paragraph shall have effect as if made under those Acts as amended by this paragraph.

7.—(1) The Minister may by regulations provide that, subject to any exemptions prescribed by the regulations,—

- (a) where the length of a vehicle, or the overall length of two or more vehicles of which one is drawing the other or others, inclusive of any load on the vehicle or vehicles, exceeds a length so prescribed, the vehicle or vehicles shall when on a road during the hours of darkness carry such lamps or reflectors each showing a light, or as the case may be facing, to the side as may be so prescribed ;
- (b) a vehicle constructed or adapted so as to be drawn by another vehicle shall when on a road during the hours of darkness carry such lamps each showing a light to the front or the side, or both, as may be prescribed ;

and any such regulations may prescribe the conditions with which lamps or reflectors carried on a vehicle in pursuance of the regulations must comply and the position and manner in which they are to be attached, and may make different provision in respect of vehicles of different classes or descriptions, or in respect of vehicles of the same class or description in different circumstances.

(2) Section ten of the Road Transport Lighting Act, 1927 (which imposes penalties for contraventions of that Act or of regulations thereunder) and section fourteen of that Act (which specifies the vehicles to which that Act applies and applies the Act to the Crown) shall apply in relation to this paragraph and regulations thereunder as they apply in relation to that Act and regulations thereunder.

8TH SCH.
—cont.

(3) Any lamps or reflectors required to be carried by virtue of this paragraph shall be carried in addition to, and not instead of, those required to be carried by or by virtue of the Road Transport Lighting Acts, 1927 to 1953, and accordingly any such lamps or reflectors shall, for the purposes of those Acts and, in particular, section two of the said Act of 1927 and for the purposes of section eight of the Act of 1934, be treated as not showing a light to the front or to the rear.

(4) Any reference in section nineteen of the Act of 1934 to the Road Transport Lighting Acts, 1927 to 1953, shall include a reference to this paragraph.

(5) It is hereby declared that any reference in section one of the Road Transport Lighting Act, 1953, to a reflector is a reference to a reflector facing to the rear.

(6) The power to make regulations conferred by this paragraph shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

8.—(1) In section six of the Road Transport Lighting Act, 1927, in sub-paragraph (b) of paragraph (iii) (which provides that agricultural vehicles and implements need not carry a separate lamp showing a red light to the rear) the word “separate” shall be omitted.

(2) In section eight of the said Act of 1927, in paragraph (i) of the proviso to subsection (1) (which provides, in the case of a vehicle drawing one or more other vehicles, that if the distance between any such vehicles exceeds five feet each vehicle shall be required to carry the same lamps as if it were not drawing or being drawn) for the words from “any such” to “being drawn” there shall be substituted the words “any two of the vehicles exceeds five feet, then as respects any light to be shown to the rear the foremost of the two vehicles, and as respects any light to be shown to the front the rearmost of the two vehicles, shall be required to carry the same lamps as if the one were not drawing the other”.

9.—(1) In subsection (1) of section two of the Act of 1930 (which provides for the classification of motor vehicles) the words from “Motor vehicles” to “classes” shall cease to have effect, and in each paragraph of that subsection the words from “that is to say” to the end of the paragraph in that subsection shall be construed as a definition for the purposes of that Act of the expression immediately preceding those words; and in paragraphs (d) to (f) of the said subsection (1) for the words “classified under this section as” there shall be substituted the words “falling within the definition contained in this subsection of”.

(2) Subsection (2) of the said section two (which empowers regulations to be made sub-dividing classes of vehicles, and making different provisions with respect to each sub-division, and varying maximum or minimum weights fixed as respects any class) shall cease to have effect, but regulations under section thirty of the Act of 1930 may vary

any of the maximum or minimum weights specified in the definitions contained in subsection (1) of the said section two, either generally or in the case of vehicles of any class or description specified in the regulations and either for the purposes of the Act and of all regulations thereunder or for such of those purposes as may be so specified.

(3) The Motor Vehicles (Definition of Motor Cars) Regulations, 1941 shall cease to have effect, but subject to the power conferred by the last foregoing sub-paragraph the definition of "motor cars" in subsection (1) of section two of the Act of 1930 shall include vehicles constructed or adapted for use for the conveyance of goods or burden of any description—

(a) which carry a container or containers for holding for the purpose of their propulsion any fuel that is wholly gaseous at sixty degrees Fahrenheit under a pressure of thirty inches of mercury, or plant and materials for producing such fuel, and of which the maximum weight unladen does not exceed three and a half tons,

(b) which do not carry any such container, or plant and materials, as aforesaid, and of which the maximum weight unladen does not exceed three tons ;

and in paragraph (b) of subsection (4) of section two of the Act of 1930 after the word "load" there shall be inserted the words "or goods or burden of any description".

(4) In subsection (3) of section four of the Act of 1930 (which provides for specifying in driving licences restrictions with respect to the driving of any class of vehicles) after the word "class" there shall be inserted the words "or description".

(5) Nothing in subsection (4) of section ten of the Act of 1930 (which empowers the Minister by regulation to vary the provisions of the First Schedule to that Act) shall be construed as limiting the powers conferred by sub-paragraph (2) of this paragraph.

10. In subsection (2) of section five of the Act of 1930 (which requires a licensing authority to refuse a driving licence if it appears from the application that the applicant suffers from any of the specified diseases and disabilities) after the word "appears", where it first occurs, there shall be inserted the words "or if on inquiry into other information the licensing authority are satisfied".

11. In subsection (2) of section six of the Act of 1930 (which provides that a court may, pending the appeal for which provision is made by that subsection, suspend the operation of the order disqualifying a person for holding or obtaining a licence to drive a motor vehicle) for the words "the court may" to the end of the subsection there shall be substituted the words "a court by or before whom a person is convicted of an offence whereby he is so disqualified (whether by virtue of the conviction or by an order of the court) may, if it thinks fit, pending the appeal against the conviction or order suspend the disqualification".

8TH SCH.
—cont.

12.—(1) In paragraph (a) of subsection (1) of section eleven of the Act of 1930 for the words from “fifty” to “aforesaid” there shall be substituted the words “one hundred pounds or to imprisonment for a term not exceeding in the case of a first conviction four, and in the case of a second or subsequent conviction six, months”.

(2) In subsection (3) of the said section eleven for the words “having regard to the lapse of time” there shall be substituted the words “by reason of three years or more having elapsed” and at the end of that subsection there shall be added the words—

“The disqualification required to be imposed by this subsection shall be for a period of not less than nine months unless more than three years have elapsed since the offender’s last conviction under this section”.

(3) In section twelve of the said Act, at the end of subsection (1) there shall be added the words “and liable to a fine not exceeding forty pounds, and in the case of a second or subsequent conviction to a fine not exceeding eighty pounds or to imprisonment for a term not exceeding three months or to both such fine and imprisonment”; and in subsection (2) the words “or second”, the words “in the case of a first conviction” and the words “or in the case of a second conviction, three months” shall be omitted.

(4) In subsection (1) of section fifteen of the said Act, in paragraph (a) for the words from “fifty” to “aforesaid” there shall be substituted the words “one hundred pounds or to imprisonment for a term not exceeding in the case of a first conviction four, and in the case of a second or subsequent conviction six, months,”; and in paragraph (b) for the words “six months” there shall be substituted the words “two years”.

(5) In section forty-six of the said Act, in subsection (6) for the words from “five pounds” to the end of the subsection there shall be substituted the words “twenty pounds, and in the case of a second or subsequent conviction to a fine not exceeding fifty pounds”.

13. In section eleven of the Act of 1930, in subsection (4) (which relates to the disqualification of persons aiding or abetting offences under that section), for the word “and” there shall be substituted the words “then unless” and for the words from “the offence of” to the end of the subsection there shall be substituted the words “the provisions of this Part of this Act as to disqualification for holding or obtaining licences shall not apply to his conviction of that offence”.

14. In section fourteen of the Act of 1930, in subsection (1) for the word “footway” there shall be substituted the word “footpath”, and at the end of that section there shall be added the following subsection:—

“(3) In this section the expressions ‘bridleway’ and ‘footpath’ have the same meanings as in the Road Traffic Act, 1956.”

15. In subsection (1) of section twenty-two of the Act of 1930 (which imposes on the driver of a motor vehicle on a road a duty

to stop on the occurrence of certain accidents and, if required, to give his name and address) for the words "whereby damage or injury is caused to any person, vehicle or animal" there shall be substituted the words "whereby personal injury is caused to any person other than the driver of that motor vehicle or damage is caused to any vehicle other than that motor vehicle or a trailer drawn thereby or to any animal other than an animal in or on that motor vehicle or a trailer drawn thereby."

16.—(1) In paragraph (b) of the proviso to subsection (1) of section three of the Act of 1930 for the words "specified in the order" there shall be substituted the words "specified by or under the order", after the words "tests or trials" there shall be inserted the words "of vehicles or trailers, or types of vehicles or trailers, constructed for use outside the United Kingdom", and at the end of the paragraph there shall be added the words "or of motor vehicles and trailers equipped with new or improved equipment or types of equipment".

(2) The Minister may by order make provision for securing that, subject to such restrictions and conditions as may be specified by or under the order, regulations under section thirty of the Act of 1930 shall have effect, in their application to such vehicles, trailers and types thereof as are mentioned in the said paragraph (b), subject to such modifications or exceptions as may be specified in the order.

(3) Any such provision as aforesaid contained in an order of the Minister in force at the coming into operation of this paragraph shall have effect as if made in the exercise of the powers conferred thereby.

17. After paragraph (g) of subsection (1) of section thirty of the Act of 1930 there shall be inserted the following paragraph:—

"(gg) the testing and inspection, by persons authorised by or under the regulations, of the brakes, silencers, steering gear, tyres, lighting equipment and reflectors of motor vehicles and trailers on any premises where they are, subject however to the consent of the owner of the premises."

18. The Minister may cause copies of any edition of the Highway Code to be sold to the public at such price as he may determine, and accordingly in subsection (3) of section forty-five of the Act of 1930 the words "at a price not exceeding one penny for each copy" shall cease to have effect.

19. The power to make regulations conferred by section fifty-nine of the Act of 1930 shall include power to make regulations applying in such circumstances only as may be specified in the regulations.

20. In section sixty of the Act of 1930 (which provides for the application of Part III of that Act to Scotland), for paragraphs (a) and (b) there shall be substituted the following paragraph:—

"(a) Section forty-six of this Act shall apply to a county council and to a town council".

8TH SCH.
—cont.

21. In section sixty-four of the Act of 1930, in subsection (1) (which provides for the holding by the traffic commissioners of public sittings in such places in any part of their area as appears to them convenient), for the words "in any part of their area as appears" there shall be substituted the words "as appear".

22.—(1) In section sixty-eight of the Act of 1930, in subsection (1), in the proviso to subsection (2) and in subsection (4), after the words "conditions as to fitness" there shall be inserted the words "or such of those conditions as are not dispensed with by an order of the Minister for the time being in force".

(2) After the said subsection (1) there shall be inserted the following subsections:—

"(1A) An order dispensing with any of the prescribed conditions as to fitness—

(a) shall not be made except where it appears to the Minister expedient so to do for the purpose of the making of tests or trials of a vehicle or its equipment;

(b) shall specify the period for which the order is to continue in force;

(c) may contain, or authorise the imposition of, requirements, restrictions or prohibitions relating to the construction, equipment or use of the vehicle as respects which the order is made,

and any such order as aforesaid may be varied or revoked by the Minister.

(1B) Where any such order as aforesaid is revoked or otherwise ceases to have effect, any certificate of fitness issued by virtue of the order shall cease to be in force.

(1C) Where a certificate of fitness is issued by virtue of such an order as aforesaid and relates to a vehicle as respects which any previous certificate of fitness is in force, the previous certificate shall thereupon cease to be in force."

(3) In subsection (3) of the said section sixty-eight after the word "being" there shall be inserted the words "except in the case of a certificate granted by virtue of an order dispensing with any of the prescribed conditions as to fitness".

(4) In section seventy-one of the Act of 1930, in subsection (4), after the words "conditions as to fitness" there shall be inserted the words "or such of those conditions as are not dispensed with by an order of the Minister under section sixty-eight of this Act for the time being in force."

23. Subsection (3) of section sixty-eight of the Act of 1930 (which provides that a certificate of fitness, unless previously revoked or cancelled, shall continue in force for five years or such shorter period as may be specified in the certificate) shall have effect with the substitution of the words "seven years" for the words "five years".

24. Section seventy-nine of the Act of 1930 (which relates to procedure on applications for licences) shall apply to applications for the exercise by the commissioners of their power to vary the conditions attached to licences and to the determination of

questions in connection with the exercise of that power, and after the word "objections" there shall be inserted the words "or other representations with respect to the determination of such questions".

8TH SCH.
—cont.

25.—(1) A local authority shall not be entitled to appeal to the Minister under section eighty-one of the Act of 1930 against the grant of a road service licence or any condition attached to such a licence, or against any variation of the conditions attached to such a licence, unless the licence relates to a route situated wholly or partly in the area of the authority.

(2) A person providing transport facilities shall not be entitled under the said section eighty-one to appeal to the Minister against any of the matters aforesaid unless the road service licence relates to a route along or near which or some part of which he is providing transport facilities.

(3) Subject to the foregoing provisions of this paragraph, the rights conferred by the said section eighty-one to appeal if aggrieved by the imposition or attachment of a condition shall include rights to appeal against a refusal to impose or attach a condition or the imposition or attachment of a condition differing from that desired, and the rights conferred by that section to appeal if aggrieved by the variation of conditions shall include rights to appeal if aggrieved by the variation differing from that desired.

(4) In paragraph (b) of subsection (1) of the said section eighty-one for the words from "opposed" to "licence" there shall be substituted the words "made objections or other representations with respect to the grant of a road service licence or the variation of the conditions attached thereto".

(5) In paragraph (e) of the said subsection (1) for the word "proposed" there shall be substituted the word "imposed".

(6) In subsection (2) of the said section eighty-one for the words "(including an order revoking a licence)" there shall be substituted the words "for giving effect to his decision on the appeal".

(7) Regulations of the Minister relating to appeals under the said section eighty-one may contain provision whereby the holder of a road service licence who appeals to the Minister is enabled to exclude, wholly or partly, the operation of subsection (4) of that section (which provides that on an appeal against the variation of the conditions of a licence the variations shall not have effect until the appeal has been disposed of).

26. Nothing in section ninety-five of the Act of 1930 (which restricts the institution of proceedings for an offence under Part IV of that Act) shall affect the institution of proceedings for an offence under section seventy-five of that Act (which relates to the keeping of accounts and records and the making of returns) by or on behalf of the Minister.

27. Subsection (2) of section one hundred and eleven of the Act of 1930 (which provides for consultation with representative organisations before the making of regulations under that Act) shall apply to the making of regulations under this Act or the Road Transport Lighting Acts, 1927 to 1953; and subsection (4) of that section, and subsection (3) of section twenty-six of the Road and Rail Traffic Act,

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—cont.

1933 (which provide that production of a copy of regulations purporting to be printed by the Government printers shall be evidence that the requirements of the Act as to the making and laying of regulations have been complied with) shall cease to have effect.

28. Section sixty-one of the London Passenger Transport Act, 1933 (which relates to approved routes) shall not apply to a vehicle so long as it is not a public service vehicle or is to be treated as a contract carriage by virtue of section forty of this Act.

29. In paragraph (k) of subsection (7) of section one of the Road and Rail Traffic Act, 1933 (which exempts from that section the use of a vehicle for any purpose specified in regulations, or the use for any purpose of a vehicle of any class or description so specified) for the words from "for any purpose specified" to the end there shall be substituted the words " , or of a vehicle of any class or description specified in regulations, for any purpose or for any purpose so specified ".

30.—(1) Regulations under section sixteen of the Road and Rail Traffic Act, 1933 (which relates to the keeping of records) may exempt the holder of the licence from recording information as respects himself when acting as driver or statutory attendant in such circumstances as may be specified in the regulations.

(2) Regulations under the said section sixteen may contain exemptions, applying in such cases and subject to such limitations as may be specified in the regulations, for vehicles used in the business of agriculture or vehicles used in the business of a travelling showman.

(3) Regulations under the said section sixteen may require separate information to be recorded as to the time spent by a person in work in connection with the vehicle or its load, or such description of such work as may be specified in the regulations, and the time spent by him in other work.

(4) Any such exemption or requirement as aforesaid contained in regulations under the said section sixteen in force at the coming into operation of this paragraph shall have effect as if made in the exercise of the powers conferred thereby.

31. The power of the Minister under section twenty-five of the Road and Rail Traffic Act, 1933, to make regulations with respect to the means by which vehicles are to be identified as being authorised vehicles shall include power to require that any such means of identification prescribed for a vehicle shall be carried notwithstanding that for the time being the vehicle is not being used for a purpose for which a licence under the said Act of 1933 is required.

32. Section thirty of the Road and Rail Traffic Act, 1933, shall come into operation on the coming into operation of this paragraph.

33. In subsection (4) of section one of the Act of 1934 (which confers power to revoke directions defining built-up areas) after the words "may be revoked" there shall be inserted the words "or varied".

34.—(1) The provisions of the four next following sub-paragraphs shall have effect in substitution for subsections (5) and (6) of section

one of the Act of 1934 (which empower the Minister to make, in default of action by the local authority, orders removing the thirty mile an hour speed limit as respects any length of road and to revoke such orders); but any order in force under the said subsection (5) at the commencement of this paragraph shall continue in force as if made under this paragraph and may be revoked or varied accordingly.

(2) The Minister may give notice to the local authority, as respects any length of road outside the London Traffic Area (as constituted by the London Traffic Act, 1924) which is deemed to be a road in a built-up area, that he has under consideration the question whether a direction should be given that it shall be deemed not to be such a road, or that a direction for the time being in force that it shall be deemed to be such a road should be revoked or varied.

(3) Where such a notice has been given, then if within the time limited by the notice the local authority so require the Minister shall, and in any case he may, hold a local inquiry, and subject as aforesaid may by order give, or revoke or vary, the direction, as the case may be.

(4) A direction given by an order under the last foregoing sub-paragraph may be revoked or varied by a subsequent order made in the like manner.

(5) Section forty-seven of the Road and Rail Traffic Act, 1933 shall apply in relation to inquiries held under sub-paragraph (3) of this paragraph as it applies to inquiries held for the purposes of that Act.

(6) The provisions of the four last foregoing sub-paragraphs shall apply in relation to such directions as are authorised by subsection (4) of section four of this Act as they apply in relation to directions that a length of road shall be deemed not to be a road in a built-up area.

(7) For the avoidance of doubt it is hereby declared that nothing in this paragraph applies to any length of trunk road.

(8) In the application of this paragraph to Scotland, for any reference to the Minister there shall be substituted a reference to the Secretary of State.

35. In subsection (3) of section six of the Act of 1934 (which confers power to disqualify an offender until he has undergone a driving test) after the words "careless driving)" there shall be inserted the words "or under section fifteen of the principal Act (which relates to driving under the influence of drink or a drug), being an offence committed in respect of a motor vehicle".

36. The maximum for the fee which may be specified in regulations under paragraph (b) of subsection (5) of section six of the Act of 1934 (which provides for the payment of fees by persons submitting themselves to driving tests) shall be increased to one pound; and accordingly in that paragraph for the words "ten shillings" there shall be substituted the words "one pound".

37. In section twenty-six of the Act of 1934 (which makes special provision as to the carriage of passengers in motor vehicles belonging to associations) for the words "the principal Act and this Act" there shall be substituted the words "the provisions of the Road Traffic Act, 1956 relating to public service vehicles".

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—cont.

38. For subsection (1) of section three of the Road Traffic (Driving Licences) Act, 1936 (which provides that a driving licence granted on a test of competence to drive prescribed for a specified class or description of vehicles shall specify that class or description and that the person to whom it is granted shall be deemed not to be the holder of a driving licence for vehicles of any other class or description) there shall be substituted the following subsection:—

“(1) A licence (other than a provisional licence) granted under Part I of the Road Traffic Act, 1930, shall specify whether the licence authorises the holder to drive motor vehicles of all classes or descriptions or of certain classes or descriptions only, and in the latter case—

- (a) the licence shall specify the classes or descriptions of vehicles which it authorises the holder to drive, and
- (b) the holder shall be deemed not to be the holder of a licence granted under that Part of that Act to drive motor vehicles of any other class or description.”

39. The Superannuation Acts, 1834 to 1950, shall apply to persons holding the office of chairman of the traffic commissioners established for each traffic area by section sixty-three of the Act of 1930, or of traffic commissioner for the metropolitan traffic area appointed under section ninety-eight of that Act, without modification; and section two of the Chairmen of Traffic Commissioners, &c. (Tenure of Office) Act, 1937 (which applied the Superannuation Acts, 1834 to 1935, to the said chairmen subject to certain modifications) shall cease to have effect.

40. Section one hundred and seventeen of the Transport Act, 1947 (which provides that traffic commissioners appointed for any area under Part IV of the Act of 1930 shall be known as the Licensing Authority for Public Service Vehicles, and that the licensing authority for the purposes of Part I of the Road and Rail Traffic Act, 1933, shall be known as the Licensing Authority for Goods Vehicles) shall cease to have effect; and accordingly, as from the coming into operation of this paragraph,—

- (a) traffic commissioners appointed under the said Part IV for any area other than the metropolitan traffic area shall be known as Traffic Commissioners for the area for which they are appointed, and the traffic commissioner appointed for the metropolitan traffic area shall be known as the Traffic Commissioner for the Metropolitan Traffic Area; and
- (b) the authority charged with the duty of granting licences under Part I of the Road and Rail Traffic Act, 1933 shall be known as the Licensing Authority.

41. In subsection (2) of section twelve of the Education (Miscellaneous Provisions) Act, 1953 (which relates to motor vehicles used for providing transport for pupils) for the words from “shall not” to “express carriage” there shall be substituted the words—

- “(a) if belonging to a local education authority, shall not for the purposes of Part IV of the Road Traffic Act, 1930 be treated as carrying passengers for hire or reward;
- (b) if not belonging to a local education authority, shall not for those purposes be treated as carrying passengers at separate fares.”

NINTH SCHEDULE

Section 55.

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
24 & 25 Vict. c. 70.	The Locomotive Act, 1861.	Sections six and seven.
41 & 42 Vict. c. 51.	The Roads and Bridges (Scotland) Act, 1878.	Section one hundred and four.
53 & 54 Vict. c. 59.	The Public Health Acts Amendment Act, 1890.	In section thirty-nine, the words "or places of refuge" and the words from "or for the purpose" to the end of the section.
55 & 56 Vict. c. 55.	The Burgh Police (Scotland) Act, 1892.	In section three hundred and eighty-five, paragraphs (1) and (3).
61 & 62 Vict. c. 29.	The Locomotives Act, 1898.	The whole Act, so far as still in force.
3 Edw. 7. c. 33	The Burgh Police (Scotland) Act, 1903.	In section fourteen, the words "or may provide island platforms for pedestrians".
17 & 18 Geo. 5. c. 37.	The Road Transport Lighting Act, 1927.	In section one, in subsection (2), the words "and subject to such conditions as may be specified in the regulation" and the words "or vehicles of any class or description", and in subsection (4), the words from "(a) as respects" to "the year"; in section six, in sub-paragraph (b) of paragraph (iii), the word "separate".
20 & 21 Geo. 5. c. 43.	The Road Traffic Act, 1930.	In section two, in subsection (1), the words from the beginning to "classes" and subsections (2) and (3); in section six, in subsection (1), the proviso; in section seven, in subsection (3), the words from "at any time" to "to time"; in section eight, in subsection (6), the second paragraph; in section twelve, in subsection (2), the words "or second", "in the case of a first conviction" and "or, in the case of a second conviction, three months"; in section fifteen, in subsection (1), the words "or when in charge of"; in section thirty, in paragraph (g) of subsection (1), the words from "and for empowering" to the end of the paragraph; in section thirty-five, in subsection (2), the words from "and a person convicted" to the end of the subsection; in

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—cont.

Session and Chapter	Short Title	Extent of Repeal
20 & 21 Geo. 5. c. 43.—cont.	The Road Traffic Act, 1930.—cont.	section forty-five, in subsection (3), the words from “ at a price ” to the end; in section forty-six, subsections (1) and (9); in section forty-eight, the proviso to subsection (4); in section fifty-five, the words from “ erect ” to “ road, and ”; in section fifty-seven, in subsection (2), the words “ places of refuge in roads, and ”; in section forty-eight, in subsection (4), the proviso and in subsection (9) the words from “ Part ” to the third “ this ”; section sixty-one; in section one hundred and eleven, subsection (4); and in section one hundred and twenty-one, the definition of “ public service vehicle ”.
23 & 24 Geo. 5. c. 14.	The London Passenger Transport Act, 1933.	Section fifty-four; in section sixty-one, subsection (7).
23 & 24 Geo. 5. c. 53.	The Road and Rail Traffic Act, 1933.	In section two, subsection (5); in section eight, subsection (1); in section thirteen, in subsection (1), the words from “ or to the danger ” to “ breach ”; and in section twenty-six, subsection (3).
24 & 25 Geo. 5. c. 50.	The Road Traffic Act, 1934.	In section one, in subsection (4), the words “ notwithstanding that such a system of lighting as aforesaid is provided thereon ” and the words “ notwithstanding that such a system of lighting as aforesaid is not provided thereon ”, subsections (5) and (6), in subsection (7), in paragraph (b), the words “ under subsection (5) of this section ”, and subsections (8) and (10); in section five, in subsection (2), the words “ or second ”, “ in the case of a first conviction ” and “ or, in the case of a second conviction, three months ”; in section six, in subsection (1), the word “ either ” and the words from the first “ or ” to the end of the subsection; sections twenty-four and twenty-five; and in the Third Schedule, the entry relating to section eighty-one of the Act of 1930.

Session and Chapter	Short Title	Extent of Repeal
1 Edw. 8. & 1 Geo. 6. c. 5.	The Trunk Roads Act, 1936.	In the Second Schedule, in the entry relating to section forty-seven of the Act of 1930, the words "and (8)"; and in Part I of the Third Schedule, in the entry relating to section one of the Act of 1934, the words "Subsection (5) shall not apply".
1 Edw. 8. & 1 Geo. 6. c. 44	The Road Traffic Act, 1937.	Section one.
1 Edw. 8. & 1 Geo. 6. c. 52	The Chairmen of Traffic Commissioners, &c. (Tenure of Office) Act, 1937.	Section two.
10 & 11 Geo. 6. c. 49.	The Transport Act, 1947.	Section one hundred and seventeen.
12, 13 & 14 Geo. 6. c. 97.	The National Parks and Access to the Countryside Act, 1949.	In section ninety-three, subsection (7).
14 Geo. 6. c. 24.	The Highways (Provision of Cattle Grids) Act, 1950.	In section six, subsection (2) and subsection (3) so far as it relates to highway authorities.
14 Geo. 6. c. 39.	The Public Utilities Street Works Act, 1950.	In section eight, in paragraph (b) of subsection (1), the words "and lighted", the word "general" and the words "subsection (1) of".
1 & 2 Eliz. 2. c. 21.	The Road Transport Lighting Act, 1953.	In section one, in subsection (5), the words from "and subject" to "the regulation" and the words "either generally or in any particular circumstances"; in section three, in subsection (3), the words "in any prescribed circumstances".
1 & 2 Eliz. 2. c. 22.	The Road Transport Lighting (No. 2) Act, 1953.	Section one.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Metropolitan Police Act, 1839	2 & 3 Vict. c. 47.
Town Police Clauses Act, 1847	10 & 11 Vict. c. 89.
Locomotive Act, 1861	24 & 25 Vict. c. 70.
Offences against the Person Act, 1861	24 & 25 Vict. c. 100.
Metropolitan Streets Act, 1867... ..	30 & 31 Vict. c. 134.
Court of Session Act, 1868	31 & 32 Vict. c. 100.
Metropolitan Public Carriage Act, 1869	32 & 33 Vict. c. 115.
Licensing Act, 1872	35 & 36 Vict. c. 94.
Roads and Bridges (Scotland) Act, 1878	41 & 42 Vict. c. 51.
Public Health Acts Amendment Act, 1890	53 & 54 Vict. c. 59.
Burgh Police (Scotland) Act, 1892	55 & 56 Vict. c. 55.
Light Railways Act, 1896	59 & 60 Vict. c. 48.
Locomotives Act, 1898	61 & 62 Vict. c. 29.
Burgh Police (Scotland) Act, 1903	3 Edw. 7. c. 33.
Motor Car Act, 1903	3 Edw. 7. c. 36.
Development and Road Improvement Funds Act, 1909	9 Edw. 7. c. 47.
Ministry of Transport Act, 1919	9 & 10 Geo. 5. c. 50.
Roads Act, 1920	10 & 11 Geo. 5. c. 72.
London Traffic Act, 1924	14 & 15 Geo. 5. c. 34.
Public Health Act, 1925... ..	15 & 16 Geo. 5. c. 71.
Parks Regulation (Amendment) Act, 1926	16 & 17 Geo. 5. c. 36.
Coroners (Amendment) Act, 1926	16 & 17 Geo. 5. c. 59.
Road Transport Lighting Act, 1927	17 & 18 Geo. 5. c. 37.
Road Traffic Act, 1930	20 & 21 Geo. 5. c. 43.
London Passenger Transport Act, 1933	23 & 24 Geo. 5. c. 14.
Local Government Act, 1933	23 & 24 Geo. 5. c. 51.
Road and Rail Traffic Act, 1933	23 & 24 Geo. 5. c. 53.
Road Traffic Act, 1934	24 & 25 Geo. 5. c. 50.
Road Traffic (Driving Licences) Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 23.
Chairmen of Traffic Commissioners, &c. (Tenure of Office) Act, 1937	1 Edw. 8. & 1 Geo. 6. c. 52.
Street Playgrounds Act, 1938	1 & 2 Geo. 6. c. 37.
Road Traffic (Driving Licences) Act, 1947	10 & 11 Geo. 6. c. 8.
Local Government (Scotland) Act, 1947	10 & 11 Geo. 6. c. 43.
Transport Act, 1947	10 & 11 Geo. 6. c. 49.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Criminal Justice Act, 1948	11 & 12 Geo. 6. c. 58.
Vehicles (Excise) Act, 1949	12, 13 & 14 Geo. 6. c. 89.
Justices of the Peace Act, 1949	12, 13 & 14 Geo. 6. c. 101.
Public Utilities Street Works Act, 1950	14 Geo. 6. c. 39.
Road Transport Lighting Act, 1953	1 & 2 Eliz. 2. c. 21.
Education (Miscellaneous Provisions) Act, 1953	1 & 2 Eliz. 2. c. 33.
School Crossing Patrols Act, 1953	1 & 2 Eliz. 2. c. 45.
Local Government (Financial Provisions) (Scotland) Act, 1954	2 & 3 Eliz. 2. c. 13.

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